

paragraph (xiii) of subsection (1) of section seventy-three of the said Act (which relates to the application of capital money in redemption of an improvement rentcharge), and of section eighty-eight of the said Act (which relates to the maintenance of improvements), be deemed to constitute an improvement rentcharge within the meaning of the said Act.

4. This Act may be cited as the *Agricultural Credits Act, 1932*, and the principal Act and this Act may be cited together as the *Agricultural Credits Acts, 1928 and 1932*.

CHAPTER 36.

An Act to give effect to a Convention for the unification of certain rules relating to international carriage by air, to make provision for applying the rules contained in the said Convention, subject to exceptions, adaptations and modifications, to carriage by air which is not international carriage within the meaning of the Convention, and for purposes connected with the purposes aforesaid. [12th July 1932.]

WHEREAS a Convention for the unification of certain rules relating to international carriage by air was on the twelfth day of October, nineteen hundred and twenty-nine, signed at Warsaw on behalf of His Majesty :

And whereas it is expedient that provision should be made for giving effect to the said Convention :

And whereas it is also expedient to make provision for applying the rules contained in the said Convention, subject to exceptions, adaptations and modifications, to carriage by air which is not international carriage within the meaning of the Convention :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this

present Parliament assembled, and by the authority of the same, as follows :—

Provisions
of Conven-
tion to have
force of law.

1.—(1) As from such day as His Majesty may by Order in Council certify to be the day on which the Convention comes into force as regards the United Kingdom, the provisions thereof as set out in the First Schedule to this Act shall, so far as they relate to the rights and liabilities of carriers, passengers, consignors, consignees and other persons and subject to the provisions of this section, have the force of law in the United Kingdom in relation to any carriage by air to which the Convention applies, irrespective of the nationality of the aircraft performing that carriage.

(2) His Majesty may by Order in Council from time to time certify who are the High Contracting Parties to the Convention, in respect of what territories they are respectively parties and to what extent they have availed themselves of the provisions of the Additional Protocol to the Convention, and any such Order shall, except in so far as it has been superseded by a subsequent Order, be conclusive evidence of the matters so certified.

(3) Any reference in the said First Schedule to the territory of any High Contracting Party to the Convention shall be construed as a reference to the territories subject to his sovereignty, suzerainty, mandate or authority, in respect of which he is a party.

(4) Any liability imposed by Article seventeen of the said First Schedule on a carrier in respect of the death of a passenger shall be in substitution for any liability of the carrier in respect of the death of that passenger either under any statute or at common law, and the provisions set out in the Second Schedule to this Act shall have effect with respect to the persons by and for whose benefit the liability so imposed is enforceable and with respect to the manner in which it may be enforced.

(5) Any sum in francs mentioned in Article twenty-two of the said First Schedule shall, for the purposes of any action against a carrier, be converted into sterling at the rate of exchange prevailing on the date on which the amount of any damages to be paid by the carrier is ascertained by the court.

2. Every High Contracting Party to the Convention who has not availed himself of the provisions of the additional Protocol thereto shall, for the purposes of any action brought in a court in the United Kingdom in accordance with the provisions of Article twenty-eight of the said First Schedule to enforce a claim in respect of carriage undertaken by him, be deemed to have submitted to the jurisdiction of that court, and accordingly rules of court may provide for the manner in which any such action is to be commenced and carried on; but nothing in this section shall authorise the issue of execution against the property of any High Contracting Party.

Provisions as to actions against High Contracting Parties who undertake carriage by air.

3. His Majesty may by Order in Council direct that the foregoing provisions of this Act shall extend, subject however to such exceptions, adaptations and modifications, if any, as may be specified in the Order, to all or any of the following territories, that is to say, the Isle of Man, any of the Channel Islands, any colony and any territory which is under His Majesty's protection, or in respect of which a mandate from the League of Nations is being exercised by His Majesty's Government in the United Kingdom.

Application of this Act to colonies, protectorates, &c.

4. His Majesty may by Order in Council apply the provisions of the First Schedule to this Act and any provision of section one of this Act to such carriage by air, not being international carriage by air as defined in the said First Schedule, as may be specified in the Order, subject however to such exceptions, adaptations and modifications, if any, as may be so specified.

Provision for applying Act to carriage by air which is not international.

Any such order may extend to the United Kingdom, and to all or any of the territories mentioned in the last preceding section.

5.—(1) An Order in Council made under either of the two last preceding sections may contain such consequential provisions as His Majesty in Council thinks fit, and may be varied or revoked by a subsequent Order in Council.

Provisions as to Orders in Council.

(2) Every such Order in Council shall be laid before Parliament so soon as may be after it is made.

6. This Act may be cited as the Carriage by Air Act, 1932.

Short title.

SCHEDULES.

FIRST SCHEDULE.

CONVENTION

FOR THE UNIFICATION OF CERTAIN RULES RELATING TO INTERNATIONAL CARRIAGE BY AIR.

CHAPTER I.

SCOPE.—DEFINITIONS.

Article 1.

(1) This Convention applies to all international carriage of persons, luggage or goods performed by aircraft for reward. It applies equally to gratuitous carriage by aircraft performed by an air transport undertaking.

(2) For the purposes of this Convention the expression "international carriage" means any carriage in which, according to the contract made by the parties, the place of departure and the place of destination, whether or not there be a break in the carriage or a transshipment, are situated either within the territories of two High Contracting Parties, or within the territory of a single High Contracting Party, if there is an agreed stopping place within a territory subject to the sovereignty, suzerainty, mandate or authority of another Power, even though that Power is not a party to this Convention. A carriage without such an agreed stopping place between territories subject to the sovereignty, suzerainty, mandate or authority of the same High Contracting Party is not deemed to be international for the purposes of this Convention.

(3) A carriage to be performed by several successive air carriers is deemed, for the purposes of this Convention, to be one undivided carriage, if it has been regarded by the parties as a single operation, whether it had been agreed upon under the form of a single contract or of a series of contracts, and it does not lose its international character merely because one contract

or a series of contracts is to be performed entirely within a territory subject to the sovereignty, suzerainty, mandate or authority of the same High Contracting Party.

1ST SCH.
—*cont.*

Article 2.

(1) This Convention applies to carriage performed by the State or by legally constituted public bodies provided it falls within the conditions laid down in Article 1.

(2) This Convention does not apply to carriage performed under the terms of any international postal Convention.

CHAPTER II.

DOCUMENTS OF CARRIAGE.

SECTION 1.—PASSENGER TICKET.

Article 3.

(1) For the carriage of passengers the carrier must deliver a passenger ticket which shall contain the following particulars :—

- (a) the place and date of issue;
- (b) the place of departure and of destination;
- (c) the agreed stopping places, provided that the carrier may reserve the right to alter the stopping places in case of necessity, and that if he exercises that right, the alteration shall not have the effect of depriving the carriage of its international character;
- (d) the name and address of the carrier or carriers;
- (e) a statement that the carriage is subject to the rules relating to liability established by this Convention.

(2) The absence, irregularity or loss of the passenger ticket does not affect the existence or the validity of the contract of carriage, which shall none the less be subject to the rules of this Convention. Nevertheless, if the carrier accepts a passenger without a passenger ticket having been delivered he shall not be entitled to avail himself of those provisions of this Convention which exclude or limit his liability.

SECTION 2.—LUGGAGE TICKET.

Article 4.

(1) For the carriage of luggage, other than small personal objects of which the passenger takes charge himself, the carrier must deliver a luggage ticket.

(2) The luggage ticket shall be made out in duplicate, one part for the passenger and the other part for the carrier.

1ST SCH.
—cont.

(3) The luggage ticket shall contain the following particulars :—

- (a) the place and date of issue;
- (b) the place of departure and of destination;
- (c) the name and address of the carrier or carriers;
- (d) the number of the passenger ticket;
- (e) a statement that delivery of the luggage will be made to the bearer of the luggage ticket;
- (f) the number and weight of the packages;
- (g) the amount of the value declared in accordance with Article 22 (2);
- (h) a statement that the carriage is subject to the rules relating to liability established by this Convention.

(4) The absence, irregularity or loss of the luggage ticket does not affect the existence or the validity of the contract of carriage, which shall none the less be subject to the rules of this Convention. Nevertheless, if the carrier accepts luggage without a luggage ticket having been delivered, or if the luggage ticket does not contain the particulars set out at (d) (f) and (h) above, the carrier shall not be entitled to avail himself of those provisions of the Convention which exclude or limit his liability.

SECTION 3.—AIR CONSIGNMENT NOTE.

Article 5.

(1) Every carrier of goods has the right to require the consignor to make out and hand over to him a document called an “air consignment note”; every consignor has the right to require the carrier to accept this document.

(2) The absence, irregularity or loss of this document does not affect the existence or the validity of the contract of carriage which shall, subject to the provisions of Article 9, be none the less governed by the rules of this Convention.

Article 6.

(1) The air consignment note shall be made out by the consignor in three original parts and be handed over with the goods.

(2) The first part shall be marked “for the carrier,” and shall be signed by the consignor. The second part shall be marked “for the consignee”; it shall be signed by the consignor and by the carrier and shall accompany the goods. The third part shall be signed by the carrier and handed by him to the consignor after the goods have been accepted.

(3) The carrier shall sign on acceptance of the goods.

1ST SCH.
—*cont.*

(4) The signature of the carrier may be stamped; that of the consignor may be printed or stamped.

(5) If, at the request of the consignor, the carrier makes out the air consignment note, he shall be deemed, subject to proof to the contrary, to have done so on behalf of the consignor.

Article 7.

The carrier of goods has the right to require the consignor to make out separate consignment notes when there is more than one package.

Article 8.

The air consignment note shall contain the following particulars :—

- (a) the place and date of its execution;
- (b) the place of departure and of destination;
- (c) the agreed stopping places, provided that the carrier may reserve the right to alter the stopping places in case of necessity, and that if he exercises that right the alteration shall not have the effect of depriving the carriage of its international character;
- (d) the name and address of the consignor;
- (e) the name and address of the first carrier;
- (f) the name and address of the consignee, if the case so requires;
- (g) the nature of the goods;
- (h) the number of the packages, the method of packing and the particular marks or numbers upon them;
- (i) the weight, the quantity and the volume or dimensions of the goods;
- (j) the apparent condition of the goods and of the packing;
- (k) the freight, if it has been agreed upon, the date and place of payment, and the person who is to pay it;
- (l) if the goods are sent for payment on delivery, the price of the goods, and, if the case so requires, the amount of the expenses incurred;
- (m) the amount of the value declared in accordance with Article 22 (2);
- (n) the number of parts of the air consignment note;
- (o) the documents handed to the carrier to accompany the air consignment note;

1ST SCH.
—cont.

- (p) the time fixed for the completion of the carriage and a brief note of the route to be followed, if these matters have been agreed upon;
- (q) a statement that the carriage is subject to the rules relating to liability established by this Convention.

Article 9.

If the carrier accepts goods without an air consignment note having been made out, or if the air consignment note does not contain all the particulars set out in Article 8 (a) to (i) inclusive and (q), the carrier shall not be entitled to avail himself of the provisions of this Convention which exclude or limit his liability.

Article 10.

(1) The consignor is responsible for the correctness of the particulars and statements relating to the goods which he inserts in the air consignment note.

(2) The consignor will be liable for all damage suffered by the carrier or any other person by reason of the irregularity, incorrectness or incompleteness of the said particulars and statements.

Article 11.

(1) The air consignment note is *prima facie* evidence of the conclusion of the contract, of the receipt of the goods and of the conditions of carriage.

(2) The statements in the air consignment note relating to the weight, dimensions and packing of the goods, as well as those relating to the number of packages, are *prima facie* evidence of the facts stated; those relating to the quantity, volume and condition of the goods do not constitute evidence against the carrier except so far as they both have been, and are stated in the air consignment note to have been, checked by him in the presence of the consignor, or relate to the apparent condition of the goods.

Article 12.

(1) Subject to his liability to carry out all his obligations under the contract of carriage, the consignor has the right to dispose of the goods by withdrawing them at the aerodrome of departure or destination, or by stopping them in the course of the journey on any landing, or by calling for them to be delivered at the place of destination or in the course of the journey to a person other than the consignee named in the air consignment note, or by requiring them to be returned to the aerodrome of departure. He must not exercise this right of disposition in such a way as to prejudice the carrier or other consignors and he must repay any expenses occasioned by the exercise of this right.

(2) If it is impossible to carry out the orders of the consignor the carrier must so inform him forthwith.

1ST SCH.
—cont.

(3) If the carrier obeys the orders of the consignor for the disposition of the goods without requiring the production of the part of the air consignment note delivered to the latter, he will be liable, without prejudice to his right of recovery from the consignor, for any damage which may be caused thereby to any person who is lawfully in possession of that part of the air consignment note.

(4) The right conferred on the consignor ceases at the moment when that of the consignee begins in accordance with Article 13. Nevertheless, if the consignee declines to accept the consignment note or the goods, or if he cannot be communicated with, the consignor resumes his right of disposition.

Article 13.

(1) Except in the circumstances set out in the preceding Article, the consignee is entitled, on arrival of the goods at the place of destination, to require the carrier to hand over to him the air consignment note and to deliver the goods to him, on payment of the charges due and on complying with the conditions of carriage set out in the air consignment note.

(2) Unless it is otherwise agreed, it is the duty of the carrier to give notice to the consignee as soon as the goods arrive.

(3) If the carrier admits the loss of the goods, or if the goods have not arrived at the expiration of seven days after the date on which they ought to have arrived, the consignee is entitled to put into force against the carrier the rights which flow from the contract of carriage.

Article 14.

The consignor and the consignee can respectively enforce all the rights given them by Articles 12 and 13, each in his own name, whether he is acting in his own interest or in the interest of another, provided that he carries out the obligations imposed by the contract.

Article 15.

(1) Articles 12, 13 and 14 do not affect either the relations of the consignor or the consignee with each other or the mutual relations of third parties whose rights are derived either from the consignor or from the consignee.

(2) The provisions of Articles 12, 13 and 14 can only be varied by express provision in the air consignment note.

Article 16.

(1) The consignor must furnish such information and attach to the air consignment note such documents as are necessary to meet the formalities of customs, octroi or police before the goods can be delivered to the consignee. The consignor is liable to the

1st Sch.
—cont.

carrier for any damage occasioned by the absence, insufficiency or irregularity of any such information or documents, unless the damage is due to the fault of the carrier or his agents.

(2) The carrier is under no obligation to enquire into the correctness or sufficiency of such information or documents.

CHAPTER III.

LIABILITY OF THE CARRIER.

Article 17.

The carrier is liable for damage sustained in the event of the death or wounding of a passenger or any other bodily injury suffered by a passenger, if the accident which caused the damage so sustained took place on board the aircraft or in the course of any of the operations of embarking or disembarking.

Article 18.

(1) The carrier is liable for damage sustained in the event of the destruction or loss of, or of damage to, any registered luggage or any goods, if the occurrence which caused the damage so sustained took place during the carriage by air.

(2) The carriage by air within the meaning of the preceding paragraph, comprises the period during which the luggage or goods are in charge of the carrier, whether in an aerodrome or on board an aircraft, or, in the case of a landing outside an aerodrome, in any place whatsoever.

(3) The period of the carriage by air does not extend to any carriage by land, by sea or by river performed outside an aerodrome. If, however, such a carriage takes place in the performance of a contract for carriage by air, for the purpose of loading, delivery or trans-shipment, any damage is presumed, subject to proof to the contrary, to have been the result of an event which took place during the carriage by air.

Article 19.

The carrier is liable for damage occasioned by delay in the carriage by air of passengers, luggage or goods.

Article 20.

(1) The carrier is not liable if he proves that he and his agents have taken all necessary measures to avoid the damage or that it was impossible for him or them to take such measures.

(2) In the carriage of goods and luggage the carrier is not liable if he proves that the damage was occasioned by negligent pilotage or negligence in the handling of the aircraft or in navigation and that, in all other respects, he and his agents have taken all necessary measures to avoid the damage.

*Article 21.*1ST SCH.
—cont.

If the carrier proves that the damage was caused by or contributed to by the negligence of the injured person the Court may, in accordance with the provisions of its own law, exonerate the carrier wholly or partly from his liability.

Article 22.

(1) In the carriage of passengers the liability of the carrier for each passenger is limited to the sum of 125,000 francs. Where, in accordance with the law of the Court seised of the case, damages may be awarded in the form of periodical payments, the equivalent capital value of the said payments shall not exceed 125,000 francs. Nevertheless, by special contract, the carrier and the passenger may agree to a higher limit of liability.

(2) In the carriage of registered luggage and of goods, the liability of the carrier is limited to a sum of 250 francs per kilogram, unless the consignor has made, at the time when the package was handed over to the carrier, a special declaration of the value at delivery and has paid a supplementary sum if the case so requires. In that case the carrier will be liable to pay a sum not exceeding the declared sum, unless he proves that that sum is greater than the actual value to the consignor at delivery.

(3) As regards objects of which the passenger takes charge himself the liability of the carrier is limited to 5,000 francs per passenger.

(4) The sums mentioned above shall be deemed to refer to the French franc consisting of 65 $\frac{1}{2}$ milligrams gold of millesimal fineness 900. These sums may be converted into any national currency in round figures.

Article 23.

Any provision tending to relieve the carrier of liability or to fix a lower limit than that which is laid down in this Convention shall be null and void, but the nullity of any such provision does not involve the nullity of the whole contract, which shall remain subject to the provisions of this Convention.

Article 24.

(1) In the cases covered by Articles 18 and 19 any action for damages, however founded, can only be brought subject to the conditions and limits set out in this Convention.

(2) In the cases covered by Article 17 the provisions of the preceding paragraph also apply, without prejudice to the questions as to who are the persons who have the right to bring suit and what are their respective rights.

1st SCH.
—cont.

Article 25.

(1) The carrier shall not be entitled to avail himself of the provisions of this Convention which exclude or limit his liability, if the damage is caused by his wilful misconduct or by such default on his part as, in accordance with the law of the Court seised of the case, is considered to be equivalent to wilful misconduct.

(2) Similarly the carrier shall not be entitled to avail himself of the said provisions, if the damage is caused as aforesaid by any agent of the carrier acting within the scope of his employment.

Article 26.

(1) Receipt by the person entitled to delivery of luggage or goods without complaint is *prima facie* evidence that the same have been delivered in good condition and in accordance with the document of carriage.

(2) In the case of damage, the person entitled to delivery must complain to the carrier forthwith after the discovery of the damage, and, at the latest, within three days from the date of receipt in the case of luggage and seven days from the date of receipt in the case of goods. In the case of delay the complaint must be made at the latest within fourteen days from the date on which the luggage or goods have been placed at his disposal.

(3) Every complaint must be made in writing upon the document of carriage or by separate notice in writing despatched within the times aforesaid.

(4) Failing complaint within the times aforesaid, no action shall lie against the carrier, save in the case of fraud on his part.

Article 27.

In the case of the death of the person liable, an action for damages lies in accordance with the terms of this Convention against those legally representing his estate.

Article 28.

(1) An action for damages must be brought, at the option of the plaintiff, in the territory of one of the High Contracting Parties, either before the Court having jurisdiction where the carrier is ordinarily resident, or has his principal place of business, or has an establishment by which the contract has been made or before the Court having jurisdiction at the place of destination.

(2) Questions of procedure shall be governed by the law of the Court seised of the case.

*Article 29.*1ST SCH.
—cont.

(1) The right to damages shall be extinguished if an action is not brought within two years, reckoned from the date of arrival at the destination, or from the date on which the aircraft ought to have arrived, or from the date on which the carriage stopped.

(2) The method of calculating the period of limitation shall be determined by the law of the Court seised of the case.

Article 30.

(1) In the case of carriage to be performed by various successive carriers and falling within the definition set out in the third paragraph of Article 1, each carrier who accepts passengers, luggage or goods is subjected to the rules set out in this Convention, and is deemed to be one of the contracting parties to the contract of carriage in so far as the contract deals with that part of the carriage which is performed under his supervision.

(2) In the case of carriage of this nature, the passenger or his representative can take action only against the carrier who performed the carriage during which the accident or the delay occurred, save in the case where, by express agreement, the first carrier has assumed liability for the whole journey.

(3) As regards luggage or goods, the passenger or consignor will have a right of action against the first carrier, and the passenger or consignee who is entitled to delivery will have a right of action against the last carrier, and further, each may take action against the carrier who performed the carriage during which the destruction, loss, damage or delay took place. These carriers will be jointly and severally liable to the passenger or to the consignor or consignee.

CHAPTER IV.

PROVISIONS RELATING TO COMBINED CARRIAGE.

Article 31.

(1) In the case of combined carriage performed partly by air and partly by any other mode of carriage, the provisions of this Convention apply only to the carriage by air, provided that the carriage by air falls within the terms of Article 1.

(2) Nothing in this Convention shall prevent the parties in the case of combined carriage from inserting in the document of air carriage conditions relating to other modes of carriage, provided that the provisions of this Convention are observed as regards the carriage by air.

1ST SCH.
—cont.

CHAPTER V.

GENERAL AND FINAL PROVISIONS.

Article 32.

Any clause contained in the contract and all special agreements entered into before the damage occurred by which the parties purport to infringe the rules laid down by this Convention, whether by deciding the law to be applied, or by altering the rules as to jurisdiction, shall be null and void. Nevertheless for the carriage of goods arbitration clauses are allowed, subject to this Convention, if the arbitration is to take place within one of the jurisdictions referred to in the first paragraph of Article 28.

Article 33.

Nothing contained in this Convention shall prevent the carrier either from refusing to enter into any contract of carriage, or from making regulations which do not conflict with the provisions of this Convention.

Article 34.

This Convention does not apply to international carriage by air performed by way of experimental trial by air navigation undertakings with the view to the establishment of a regular line of air navigation, nor does it apply to carriage performed in extraordinary circumstances outside the normal scope of an air carrier's business.

Article 35.

The expression "days" when used in this Convention means current days not working days.

Article 36.

The Convention is drawn up in French in a single copy which shall remain deposited in the archives of the Ministry for Foreign Affairs of Poland and of which one duly certified copy shall be sent by the Polish Government to the Government of each of the High Contracting Parties.

Article 37.

(1) This Convention shall be ratified. The instruments of ratification shall be deposited in the archives of the Ministry for Foreign Affairs of Poland, which will notify the deposit to the Government of each of the High Contracting Parties.

(2) As soon as this Convention shall have been ratified by five of the High Contracting Parties it shall come into force as between them on the ninetieth day after the deposit of the fifth.

ratification. Thereafter it shall come into force between the High Contracting Parties who shall have ratified and the High Contracting Party who deposits his instrument of ratification on the ninetieth day after the deposit.

1st Sch.
—cont.

(3) It shall be the duty of the Government of the Republic of Poland to notify to the Government of each of the High Contracting Parties the date on which this Convention comes into force as well as the date of the deposit of each ratification.

Article 38.

(1) This Convention shall, after it has come into force, remain open for accession by any State.

(2) The accession shall be effected by a notification addressed to the Government of the Republic of Poland, which will inform the Government of each of the High Contracting Parties thereof.

(3) The accession shall take effect as from the ninetieth day after the notification made to the Government of the Republic of Poland.

Article 39.

(1) Any one of the High Contracting Parties may denounce this Convention by a notification addressed to the Government of the Republic of Poland, which will at once inform the Government of each of the High Contracting Parties.

(2) Denunciation shall take effect six months after the notification of denunciation, and shall operate only as regards the Party who shall have proceeded to denunciation.

Article 40.

(1) Any High Contracting Party may, at the time of signature or of deposit of ratification or of accession declare that the acceptance which he gives to this Convention does not apply to all or any of his colonies, protectorates, territories under mandate, or any other territory subject to his sovereignty or his authority, or any territory under his suzerainty.

(2) Accordingly any High Contracting Party may subsequently accede separately in the name of all or any of his colonies, protectorates, territories under mandate or any other territory subject to his sovereignty or to his authority or any territory under his suzerainty which has been thus excluded by his original declaration.

(3) Any High Contracting Party may denounce this Convention, in accordance with its provisions, separately or for all or any of his colonies, protectorates, territories under mandate or any other territory subject to his sovereignty or to his authority, or any other territory under his suzerainty.

1st SCH.
—cont.

Article 41.

Any High Contracting Party shall be entitled not earlier than two years after the coming into force of this Convention to call for the assembling of a new international Conference in order to consider any improvements which may be made in this Convention. To this end he will communicate with the Government of the French Republic which will take the necessary measures to make preparations for such Conference.

This Convention done at Warsaw on the 12th October, 1929, shall remain open for signature until the 31st January, 1930.

[Here follow the signatures on behalf of the following countries :—

Germany, Austria, Belgium, Brazil, Denmark, Spain, France, Great Britain and Northern Ireland, the Commonwealth of Australia, the Union of South Africa, Greece, Italy, Japan, Latvia, Luxembourg, Norway, the Netherlands, Poland, Roumania, Switzerland, Czecho-Slovakia, the Union of Soviet Socialist Republics, and Yugoslavia.]

ADDITIONAL PROTOCOL.

(With reference to Article 2.)

The High Contracting Parties reserve to themselves the right to declare at the time of ratification or of accession that the first paragraph of Article 2 of this Convention shall not apply to international carriage by air performed directly by the State, its colonies, protectorates or mandated territories or by any other territory under its sovereignty, suzerainty or authority.

[This additional Protocol was signed on behalf of the same countries as those above mentioned.]

SECOND SCHEDULE.

PROVISIONS AS TO LIABILITY OF CARRIER IN THE
EVENT OF THE DEATH OF A PASSENGER.

1. The liability shall be enforceable for the benefit of such of the members of the passenger's family as sustained damage by reason of his death.

In this paragraph the expression "member of a family" means wife or husband, parent, step-parent, grandparent, brother, sister, half-brother, half-sister, child, step-child, grandchild :

Provided that, in deducing any such relationship as aforesaid, any illegitimate person and any adopted person shall be treated as being, or as having been, the legitimate child of his mother and reputed father or, as the case may be, of his adopters.

2. An action to enforce the liability may be brought by the personal representative of the passenger or by any person for whose benefit the liability is under the last preceding paragraph enforceable, but only one action shall be brought in the United Kingdom in respect of the death of any one passenger, and every such action by whomsoever brought shall be for the benefit of all such persons so entitled as aforesaid as either are domiciled in the United Kingdom or, not being domiciled there, express a desire to take the benefit of the action.

2ND SCH.
—cont.

3. Subject to the provisions of the next succeeding paragraph, the amount recovered in any such action, after deducting any costs not recovered from the defendant, shall be divided between the persons entitled in such proportions as the Court (or, where the action is tried with a jury, the jury) direct.

4. The Court before which any such action is brought may at any stage of the proceedings make any such order as appears to the Court to be just and equitable in view of the provisions of the First Schedule to this Act limiting the liability of a carrier and of any proceedings which have been, or are likely to be, commenced outside the United Kingdom in respect of the death of the passenger in question.

CHAPTER 37.

An Act to consolidate the Solicitors Acts, 1839 to 1928, and other enactments relating to solicitors of the Supreme Court.

[12th July 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

THE ROLL OF SOLICITORS.

Custody of the Roll.

1.—(1) The Law Society shall, subject as hereinafter provided, perform the duties imposed by this Act on the registrar of solicitors :

The Law
Society to
act as
registrar
of solicitors.

Provided that the Master of the Rolls, with the concurrence of the Lord Chancellor and the Lord Chief

PART I.
—*cont.*

Justice, or (in case of difference) of one of them, may by order under their hands appoint any fit person, and thereafter from time to time appoint another fit person, or re-appoint the Society, to perform the said duties during pleasure.

(2) In this Act the expression "the registrar" means, as the case may be, either the Law Society or the person appointed for the time being to perform the said duties.

The
registrar
to keep
the roll of
solicitors.

2.—(1) The registrar shall keep, in accordance with the provisions of this Act and of any regulations made thereunder, an alphabetical list (in this Act referred to as "the roll") of all solicitors of the Supreme Court (in this Act referred to as "solicitors").

(2) The registrar shall have the custody of the roll and of all documents relating thereto, and shall allow any person to inspect the roll during office hours without payment.

Admission and enrolment.

Admission
and enrol-
ment of
solicitors.

3.—(1) Any person who has obtained from the society a certificate of having passed the final examination provided for by this Act may apply to the Master of the Rolls to be admitted as a solicitor; and thereupon the Master of the Rolls, unless cause to the contrary is shown to his satisfaction, shall by writing under his hand and in such manner and form as he may from time to time think fit admit that person to be a solicitor.

(2) The registrar, upon production of an admission signed by the Master of the Rolls, and on payment to the Law Society of a fee not exceeding five pounds, shall enter on the roll the name of the person admitted.

Removal from the Roll and suspension from practice.

Constitu-
tion of
Disciplinary
Committee.

4. The Master of the Rolls shall appoint from among members of the Council of the Law Society and such former members of the Council as are practising as solicitors in England a disciplinary committee (in this Part of this Act referred to as "the Committee") consisting of such number of persons, not being less than three nor more than seven, as he may from time to time think fit, and may from time to time remove any member from the Committee and fill any vacancy therein and, subject to such limit as aforesaid, increase the number of the Committee.

5.—(1) Any application—

(a) by a solicitor to procure his name to be removed from the roll;

(b) by another person to strike the name of a solicitor off the roll, or to require a solicitor to answer allegations contained in an affidavit,

shall be made to and heard by the Committee in accordance with rules made under the next succeeding section :

Provided that nothing in this section shall affect the jurisdiction which, apart from the provisions of this section, is exercisable by the Master of the Rolls or any judge of the High Court over solicitors.

(2) On the hearing of any such application the Committee shall have power to make any such order as to removing from or striking off the roll the name of the solicitor to whom the application relates, as to suspending him from practice, as to the payment by any party of costs, and otherwise in relation to the case as they may think fit :

Provided that upon proof of the commission of an offence with respect to which express provision is made by any section of this Act, the Committee shall, without prejudice to their power of making an order as to costs, impose the punishment, or one of the punishments, specified in that section.

6.—(1) The Committee, with the concurrence of the Master of the Rolls, may from time to time make rules for regulating the making, hearing and determining of applications to the Committee under this Part of this Act :

Procedure
of Com-
mittee.

Provided that no such application shall be heard before less than three members of the Committee.

(2) For the purposes of any application made to them under this Part of this Act, the Committee may administer oaths and the applicant and the solicitor to whom the application relates may sue out writs of subpoena ad testificandum and duces tecum, but no person shall be compelled under any such writ to produce any document which he could not be compelled to produce on the trial of an action.

7.—(1) Every order made by the Committee under this Part of this Act shall be prefaced by a statement of their findings in relation to the facts of the case and shall

Filing,
effect and
notice of
orders

PART I.

—cont.

Powers of
Committee.

PART I.
—*cont.*
made by
the Com-
mittee.

be signed by their Chairman and filed with the registrar, and as soon as it has been so filed shall be acted upon by the registrar and be enforceable in the same manner as a judgment or order of the High Court to the like effect.

(2) Where by any such order as aforesaid the name of any solicitor is ordered to be removed from, or struck off, the roll, or any solicitor is suspended from practice, the registrar shall forthwith upon the filing of the order cause a notice stating the effect of the operative part thereof to be published in the London Gazette.

(3) The file of orders made by the Committee under this Part of this Act may be inspected by any person during office hours without payment.

Appeal
against
orders of
Committee.

8. An appeal against any order made by the Committee under this Part of this Act shall lie to the High Court at the instance either of the applicant or of the solicitor to whom the application relates, and every such appeal shall be made within such time and in such form and shall be heard in such manner as may be prescribed by rules made from time to time by the Master of the Rolls with the concurrence of the Lord Chancellor and the Lord Chief Justice or (in case of difference) of one of them.

Procedure
upon
applications
to the High
Court.

9. The following provisions of this section shall have effect in relation to any application made to the High Court by another person to strike the name of a solicitor off the roll, or to require a solicitor to answer allegations contained in an affidavit :—

- (i) the applicant shall serve upon the registrar fourteen clear days' notice of his intention to make the application together with copies of all affidavits intended to be used in support of the application, and the Court shall not entertain any such application except upon production of an affidavit proving compliance with the requirements of this paragraph;
- (ii) the registrar may appear by counsel upon the hearing of any such application and upon any other proceedings arising out of or in reference to the application, and may apply to the Court to make absolute any order *nisi* which may have been made by the Court in the matter of the application, or to make an order that the

name of the solicitor to whom the application relates be struck off the roll or, as the case may be, that the solicitor do answer the allegations contained in the affidavit, or such other order as the court may deem fit :

PART I.
—cont.

- (iii) the Court may order the costs of the registrar of or relating to any of the matters aforesaid to be paid by the solicitor against whom, or by the person by whom, the application was made, or was intended to be made, or partly by one and partly by the other of them.

10. Where an order (whether *nisi* or absolute) has been made by the High Court upon a motion to remove from, or strike off, the roll the name of a solicitor, or to require a solicitor to answer allegations contained in an affidavit, and has not been drawn up by the applicant within one week after it was made, the registrar may cause the order to be drawn up, and all future proceedings thereon shall be taken as if the motion had been made by the registrar.

Power of registrar to draw up orders.

11. Where the name of any solicitor is ordered by the High Court to be removed from, or struck off, the roll, the order shall forthwith and before it is acted upon be produced to the registrar, and the registrar shall enter a note thereof on the roll in connection with the name of the solicitor and shall remove or strike off the name and shall mark the order as having been entered.

Orders of High Court to be produced to registrar.

12. Subject as hereinafter provided, no solicitor shall be liable to have his name struck off the roll on account of any defect in his articles of clerkship, or in the registration thereof, or in his service thereunder, or in his admission and enrolment, unless the application to strike his name off the roll is made within twelve months after the date of his enrolment :

Limitation of time for certain applications to strike names off the roll.

Provided that this section shall not apply in any case where fraud is proved to have been committed in connection with the articles, registration, service, admission or enrolment.

Restoration to the Roll.

13.—(1) The Master of the Rolls may, if he thinks fit, at any time order the registrar to replace on the roll the name of a solicitor whose name has been removed from, or struck off, the roll.

Power to replace name of solicitor on roll.

PART I.
—cont.

(2) In the case of a solicitor whose name has been struck off the roll for such an offence as is mentioned in section fifty-one of this Act, an order under this section shall for the purposes of subsection (2) of section three of this Act be deemed to be an admission.

PART II.

QUALIFICATIONS FOR ADMISSION AS SOLICITOR.

General.

Service
under
articles and
passing of
examina-
tions
conditions
precedent to
admission.

14. Subject to the provisions of this Part of this Act, no person shall be admitted as a solicitor unless he—

- (a) has been bound by written articles of clerkship (in this Act referred to as “articles”) to serve as an articulated clerk to a practising solicitor in England for such term as is required by the next succeeding section and has duly served under those articles for that term; and
- (b) has obtained from the Society, or some person authorised in writing by the Society, a certificate or certificates to the effect that he has passed—

(i) a preliminary examination, that is to say, an examination in general knowledge of persons becoming articulated clerks; and

(ii) an intermediate examination, that is to say, an examination of articulated clerks in order to ascertain the progress made by them during their articles in acquiring the knowledge necessary for rendering them fit and capable to act as solicitors; and

(iii) a final examination, that is to say, an examination of persons applying to be admitted as solicitors as to their articles and service thereunder and their fitness and capacity to act as solicitors in all business and matters usually transacted by solicitors, and also, if any allegation is made by the registrar as to the moral unfitness of any such person to be an officer of the Supreme Court, an inquiry into the truth of the allegation.

Articles of Clerkship.

PART II.

—cont.

15. The term for which a person desirous of being admitted as a solicitor, not being a person exempted from service under articles by virtue of any provision of this Part of this Act, is required to be bound by, and serve under, articles shall be determined in accordance with the provisions of the First Schedule to this Act.

Term of articles.

16.—(1) All articles shall be produced to the registrar for registration and the registrar, on being satisfied by a statutory declaration or such other evidence as he deems sufficient of the due execution of the articles, shall record the names and addresses of the parties thereto and the date thereof and the date of the making of the entry, in a register, which shall be open to the inspection of any person during office hours without payment.

Registration of articles.

(2) If the articles of any clerk are not produced to the registrar for registration within six months from the date thereof, the service of the clerk shall, unless the Master of the Rolls otherwise directs, be reckoned as commencing only upon the date of the production of the articles.

(3) A fee of five shillings shall be payable to the registrar by the person producing any articles to him for registration under this section.

17. No solicitor shall have more than two articulated clerks at the same time.

Number of articulated clerks.

18.—(1) No solicitor shall take or retain any articulated clerk after he has ceased to practise as a solicitor, or while he is employed as a clerk by another solicitor.

Solicitor ceasing to practise, or employed by another solicitor, not to take or retain an articulated clerk.

(2) Service by an articulated clerk to a solicitor during any period whilst such solicitor is employed as aforesaid shall not be deemed to be good service by the clerk under his articles.

19. Subject to the provisions of this Part of this Act, every articulated clerk shall during the whole term of his articles be actually employed in the proper business, practice and employment of a solicitor by the solicitor to whom he is articulated.

Articled clerks to be employed continuously by masters.

PART II.

—*cont.*

Reckoning
of service
as pupil
with
London
agent or
barrister.

20. For the purposes of the last preceding section, such employment of an articled clerk as is hereinafter mentioned shall, if undertaken by virtue of a stipulation in his articles or with the permission of the solicitor to whom he is bound, be treated as if it had been employment under his articles with that solicitor, that is to say—

- (a) in the case of any articled clerk, employment during any part not exceeding one year of the term of his articles as a bonâ fide pupil with that solicitor's London agent in the business practice or employment of a solicitor; and
- (b) in the case of a clerk bound by articles to serve for a term of four years or longer, employment during any part not exceeding one year of the said term as a bonâ fide pupil with a practising barrister in England or a practising certificated special pleader in England, either in addition to such employment as is mentioned in the preceding paragraph, or in lieu thereof.

Articled
clerks not
to take other
employment
except with
approval of
a judge.

21.—(1) Subject to the provisions of this Part of this Act, no articled clerk shall during the term of his articles hold any office or engage in any employment other than the employment of clerk to the solicitor to whom he is bound or his partner, if any, in the business, practice and employment of a solicitor.

(2) This section shall not apply to any articled clerk who, before he enters upon or engages in any office or employment, has obtained—

- (a) the written consent of the solicitor to whom he is bound; and
- (b) an order of the Master of the Rolls or of a judge of the High Court sanctioning the holding by him of the office or his engagement in the employment.

(3) An order made under subsection (2) of this section may impose on the applicant such terms and conditions with regard to the office or employment as the Master of the Rolls or judge may think fit, and where any terms or conditions are so imposed and the applicant accepts or engages in the office or employment, he shall,

before being admitted, prove to the satisfaction of the Master of the Rolls, or a judge of the High Court, and of the examiners appointed by the Society for the purposes of this Part of this Act that he has duly observed and fulfilled those terms and conditions.

PART II.
—*cont.*

(4) An articled clerk who has omitted to make an application for an order under subsection (2) of this section before entering upon or engaging in an office or employment may at any time during the remainder of the term of his articles, or within one year after the expiration thereof, make to the Master of the Rolls, or a judge of the High Court, an application for an order relieving him from any disability under subsection (1) of this section; and, if he proves by affidavit from the solicitor to whom he was bound, or other satisfactory evidence, that his holding of the office or engagement in the employment was with the consent of the solicitor and has not interfered with due service under his articles, the judge hearing the application may grant such relief and, as a condition thereof, may make such order as he thinks fit with respect to the applicant's service for the remainder (or any part of the remainder) of the term of his articles subsequent to his entering upon the office or engaging in the employment, or with respect to the passing of any examination.

(5) Not less than fourteen days before making an application for any order under this section, the applicant shall give written notice of his intention to the registrar stating his name and residence and the name and residence of the solicitor to whom he is, or was, bound and the nature of the office or employment and the time which it is expected to occupy, or has occupied.

22. No person shall be disqualified for admission as a solicitor, or be liable to be struck off the roll, by reason only of any solicitor whom he has served for the whole or any part of the term of articled service required by this Act having neglected or omitted to take out a practising certificate in accordance with the provisions of this Act, or by reason only of any solicitor whom he has served for any period having been after the termination of that period, removed from or struck off the roll.

Default of
solicitor in
certain
respects not
to dis-
qualify
his articled
clerk.

PART II.

—*cont.*

Master of
Rolls may
in certain
cases
disregard
irregular-
ities of ser-
vice under
articles.

23. Where an articled clerk has not served under his articles in strict accordance with the provisions of this Part of this Act but has after the execution of his articles *bonâ fide* served, either continuously or not, one or more solicitors as an articled clerk for periods equal in the aggregate to the full term for which he was originally articled and has complied with the other requirements of this Part of this Act, the Master of the Rolls may, if he is satisfied that the irregularity in the service was occasioned by accident, mistake or other sufficient cause and that the service, though irregular, was substantially equivalent to service in accordance with the provisions of this Part of this Act, admit the clerk as if the service had been regular service.

Rights of
articled
clerk upon
bankruptcy,
&c., of
solicitor.

24.—(1) Where before the expiration of the term for which a clerk is articled the solicitor to whom he is articled is adjudged bankrupt or is imprisoned for debt and remains in prison for twenty-one days, the High Court upon the application of the clerk may order his articles to be discharged, or to be transferred to another solicitor on such terms and in such manner as the court may think fit.

(2) Nothing in the last preceding subsection shall be construed as limiting or affecting—

(i) any power of the High Court in relation to articles, other than the powers mentioned in that subsection; or

(ii) the provisions of section thirty-four of the Bankruptcy Act, 1914.

4 & 5 Geo. 5.
c. 59.

Fresh
articles in
case of
death or
retirement
of solicitor,
or if articles
cancelled or
discharged.

25.—(1) Where before the expiration of the term for which a clerk is articled the solicitor to whom he is articled ceases to practise as a solicitor, or dies, or his articles are cancelled by mutual consent, or discharged by the High Court, the clerk may be bound by fresh articles to another practising solicitor for the residue of the said term and service under those articles in accordance with the provisions of this Part of this Act shall be good service.

(2) The foregoing provisions of this Part of this Act with respect to the registration of articles shall apply to fresh articles entered into in accordance with the provisions of this section.

Examinations.

PART II.

—*cont.*

26.—(1) The Law Society shall hold at least three times in every year a preliminary examination, an intermediate examination and a final examination.

Examinations to be held under management of Law Society.

(2) Subject to the provisions of this Act, the Society shall have the entire management and control of all such examinations and may make regulations with respect to all or any of the following matters, that is to say—

- (a) the subjects for, and the mode of conducting, the examination of candidates;
- (b) the times and places of examinations and notices thereof;
- (c) the certificates to be given to persons passing any examination;
- (d) the appointment and removal of examiners and their remuneration by fees or otherwise; and
- (e) any other matter as to which the Society deem it expedient to make regulations for the purposes of this section.

(3) The Society shall conduct the examinations independently of any school of law, and no members of the teaching staff of any school of law provided by the Society shall take any part in any such examination.

(4) Copies of all regulations made under this section shall be transmitted forthwith to the Master of the Rolls, the Lord Chancellor and the Lord Chief Justice, and if within twenty-eight days after a copy of any such regulation has been so transmitted, any two of those judges (the Master of the Rolls being one) signify by writing under their hands addressed to the President, Vice-President or Secretary of the Society their dissent from that regulation, or any part thereof, that regulation, so far as dissented from, shall be of no effect.

(5) If after any such regulation or any part thereof has come into force any two of the judges above-mentioned (the Master of the Rolls being one) signify in manner aforesaid their dissent from that regulation, or any part thereof, that regulation, so far as dissented from, shall on the expiration of two months cease to have effect.

PART II.
—cont.
Fees in
respect of
examina-
tions.

27.—(1) Any person applying to be examined or re-examined at a preliminary, intermediate or final examination shall pay to the Society in respect of those examinations such fees, and in such proportions and at such times, as may from time to time be determined by regulations made by the Master of the Rolls with the concurrence of the Lord Chancellor and the Lord Chief Justice or (in case of difference) of one of them.

(2) All fees paid under this section shall be applied by the Society towards the expenses from time to time incurred by them in connection with examinations and the lectures, classes and other teaching provided by them for persons articled, or about to become articled.

General
exemptions
from pre-
liminary
examina-
tion.

28.—(1) Every person shall be exempted from the preliminary examination who—

(a) has taken a degree, not being an honorary degree, in arts or law at any University specified in the Second Schedule to this Act; or

(b) has passed the examination in Responsions at Oxford, or the previous examination at Cambridge, or the matriculation or other corresponding examination at any other University specified in the said schedule, or any examination accepted by any such University as exempting from those examinations; or

(c) has been called to the Bar in England; or

(d) had before the fourth day of August, nineteen hundred and twenty-seven, passed any of the examinations referred to in section ten of the Solicitors Act, 1877 (as amended by any other enactment) or in any regulations made under that section.

40 & 41 Vict.
c. 25.

(2) Any dispute whether an examination is for the purposes of this section an examination corresponding to a matriculation examination, shall be decided by the Board of Education.

(3) The Board of Education, after consultation with the Law Society, and with the concurrence of the Lord Chancellor, the Lord Chief Justice and the Master of the Rolls, or any two of them, may by regulations add to the examinations the passing of which exempts from

the preliminary examination and prescribe, if it appears necessary, the conditions and standards to be complied with in connection with any examination so added, and on the making of any such regulation this section shall have effect accordingly.

PART II.
—cont.

(4) As respects Universities and examinations in Scotland, the powers conferred by this section on the Board of Education shall be exercisable by the Scottish Education Department.

29. The Master of the Rolls or the Lord Chief Justice may in special circumstances exempt any person from the preliminary examination, or any part thereof, either unconditionally or subject to such conditions as he may think fit.

Special
exemptions
from
preliminary
examination.

30. The Society may by regulations made under section twenty-six of this Act exempt from the intermediate examination, or any part thereof, any person who has obtained—

Exemptions
from inter-
mediate
examina-
tion.

- (a) the degree of Bachelor of Civil Law, or of Laws, or of Law, or a certificate of having passed the examination required for any such degree, at any University in the United Kingdom; or
- (b) any such other degree or distinction in any school or faculty of law or jurisprudence at any University in the United Kingdom as may be specified in the regulations.

31. A person who has entered into articles for the required term and has duly served thereunder and complied with the provisions of this Part of this Act may present himself for final examination at the examination next preceding the expiration of the term of his articles or at any subsequent examination.

Date for
admission
to final
examina-
tion.

32.—(1) Subject as hereinafter provided, a person articulated to a solicitor after the thirty-first day of December, nineteen hundred and twenty-two shall not be admitted to the final examination unless he satisfies the Society that he has during a period of one year, such period being continuous or subject to such intervals as the Society may think reasonable, complied with the requirements of the Society as to attendance at a course

Conditions
of admis-
sion to
final
examina-
tion.

PART II.
—*cont.*

of legal education at a law school provided or approved by the Society :

Provided that—

- (a) the Society, if satisfied that the attendance of any person at such a course of education was, for geographical or other reasons, impracticable shall exempt him wholly or partly from the provisions of this section ; and
- (b) any person may appeal to the Master of the Rolls, in accordance with rules made by him, against the refusal of the Society to exempt him from the provisions of this section, or to approve any law school for the purposes of this section, and the decision of the Master of the Rolls shall be final and binding on the Society ; and
- (c) the provisions of this section shall not apply to any person who—
 - (i) proves to the satisfaction of the Society, or on appeal to the satisfaction of the Master of the Rolls, that he has taken a degree at any university specified in the Second Schedule to this Act after passing thereat a final examination in law ; or
 - (ii) applies to be admitted to the final examination after duly serving as clerk to a solicitor for ten years and thereafter as an articled clerk for the required term.

(2) The Society shall supply a list of law schools provided or approved by them for the time being to any person who applies therefor and to every articled clerk as soon as may be after his articles are registered.

Appeal to Master of the Rolls in cases of failure to pass intermediate or final examination.

33.—(1) Any candidate at an intermediate or a final examination who either on account of the nature or difficulty of the questions put to him by the examiners, or on any other ground whatsoever, objects to the refusal to him of a certificate of his having passed that examination may within one month after the refusal appeal to the Master of the Rolls by petition presented in such manner and subject to such regulations as the Master of the Rolls may from time to time direct.

(2) Upon the hearing of any petition presented to him under this section, the Master of the Rolls may make such order as he thinks fit, and where he orders the admission of a petitioner to whom a certificate of having passed a final examination has been refused, such order shall entitle the petitioner to receive from the Society the like certificate as he would have received if he had passed the final examination.

PART II.
—cont.

Special Exemptions from Articled Service and certain Examinations.

34. Any barrister of not less than five years standing at the English bar who procures himself to be disbarred with a view to becoming a solicitor and obtains from two benchers of the Inn of Court to which he belongs, or belonged, a certificate of his being a fit and proper person to practise as a solicitor shall be exempted from service under articles and from the intermediate examination and from such part of the final examination as relates to articles and service thereunder.

Exemption of certain barristers from service under articles and intermediate examination.

35.—(1) A solicitor of a superior court in a British possession to which this section applies who has been in practice before such court for not less than three years may—

Privileges of certain colonial solicitors.

- (a) on giving due notice and the prescribed proof of his qualifications and good character; and
- (b) on passing the prescribed examination or, in the prescribed cases, without examination; and
- (c) after service under articles during the prescribed period or, in the prescribed cases, without such service;

be admitted as a solicitor upon payment of the prescribed amount in respect of stamp duties and fees.

(2) Where as respects a superior court in a British possession, His Majesty in Council is satisfied on the report of a Secretary of State—

- (a) that the regulations respecting the admission of solicitors of that court are such as to secure that those solicitors possess proper qualifications and competency; and

PART II.
—cont.

- (b) that by the law of that possession solicitors of the Supreme Court will be admitted as solicitors of the superior court in that possession on terms as favourable as those on which it is proposed to admit solicitors of that superior court in pursuance of this section as solicitors of the Supreme Court;

His Majesty may by Order in Council apply this section to the said superior court and British possession subject to any exceptions, conditions and modifications specified in the Order, and by the same or any subsequent Order in Council may, as respects that court and possession, provide for all matters authorised by this section to be prescribed and for all matters appearing to His Majesty to be necessary or proper for giving effect to the Order and to this Act.

- (3) His Majesty may by Order in Council revoke or vary any Order previously made under this section.

(4) In this section, the expressions “superior court” and “solicitor” mean respectively, as respects any British possession, such court in the possession and such solicitor, attorney, law agent or other person entitled to practise as agent in a court of law in that possession as may be prescribed; and for the purpose of this section a part of a British possession under a local legislature may be treated as a British possession.

63 & 64
Vict. c. 14.

(5) An Order in Council applying this section to a court in a British possession and providing for the admission of solicitors of that court as solicitors in England, and an Order in Council applying the Colonial Solicitors Act, 1900, to the same court and providing for the admission of solicitors of that court as law agents in Scotland may, if it be convenient, be made together as one Order.

(6) A person admitted under the Colonial Solicitors Act, 1900, whether before or after the commencement of this Act, as a law agent in Scotland or as a solicitor in Northern Ireland, shall not, whilst remaining a law agent in Scotland or a solicitor in Northern Ireland as the case may be, be admitted under this section as a solicitor in England, and for the purposes of this provision a person who before the first day of October, nineteen hundred and twenty-one, was admitted under the Colonial Solicitors Act, 1900, as a solicitor in Ireland shall be

deemed to have been admitted under that Act as a solicitor in Northern Ireland. PART II.
—cont.

(7) For the purposes of subsection (2) of section six of the Colonial Solicitors Act, 1900, a person admitted as a solicitor in England under this section shall be deemed to have been so admitted under that Act.

PART III.

PRACTISING CERTIFICATES.

36. It shall be the duty of the registrar to issue in accordance with the provisions of this Part of this Act certificates (in this Act referred to as “practising certificates”) authorising the solicitors named therein to practise as solicitors subject to their certificates being duly stamped. Registrar
to issue
practising
certificates.

37.—(1) Every solicitor applying for a practising certificate shall, in person or by his agent,— Applica-
tions for
practising*
certificate.

(a) deliver to the registrar a written declaration, in the form set out in the Third Schedule to this Act or in a form to the like effect, stating the name and place of business of the applicant and the date of his admission and signed by the applicant or his partner or, if the place of business of the applicant is more than twenty miles from London, by his London agent on his behalf; and

(b) at the same time produce to the registrar a duly signed duplicate of the declaration.

(2) The registrar shall cause all the particulars contained in a declaration to be entered in a register kept for that purpose, and any person may inspect such register during office hours without payment.

(3) Subject to the provisions of the next succeeding section, the registrar, if satisfied that the name of the applicant is on the roll, shall, after the expiration of six days from the delivery to him of the declaration, deliver to the applicant or his agent upon demand a practising certificate in the form set out in the Third Schedule to this Act or in a form to the like effect.

(4) If in any case, not being a case to which the next succeeding section applies, the registrar on application duly made to him refuses or neglects to issue a

PART III.
—*cont.*

practising certificate, the applicant may apply to the High Court or any judge thereof or the Master of the Rolls who may make such order in the matter, including an order for payment of costs by or to either the registrar or the applicant, as shall be just.

(5) There shall be paid to the registrar in respect of every practising certificate issued by him a fee of one pound, or such less fee as the Master of the Rolls with the concurrence of the Lord Chancellor and the Lord Chief Justice, or (in case of difference) of one of them, may from time to time by order determine.

(6) Out of every fee received by the registrar under this section five shillings may be applied by him to his own use and the remainder shall be applied in such manner as the Society may think fit towards the expenses of their school in London and the making of grants to approved law schools elsewhere, and the registrar shall submit annually to the judges mentioned in the last preceding subsection an account of all such fees and of their application, and shall cause a copy of the account to be deposited at the hall of the Society for inspection by any solicitor.

Discretion
of registrar
to refuse
certificate
in special
cases.

38. In any of the following cases, that is to say, where a solicitor—

- (a) applies for a practising certificate, having neglected so to do for twelve months after the expiration of the last certificate issued to him; or
- (b) applies for a practising certificate whilst he is an undischarged bankrupt; or
- (c) having been suspended from practice or struck off the roll, first applies for a practising certificate after the expiration of his suspension or after his re-admission to the roll, as the case may be,

he must, unless the registrar or the Master of the Rolls otherwise orders, give to the registrar, at least six weeks before the application is made, notice of his intention to make the application, and the registrar may in his discretion refuse the application, subject, however, to an appeal to the Master of the Rolls, who may affirm the decision of the registrar or may direct him to issue a certificate to the applicant on such terms and conditions, if any, as the Master of the Rolls may think fit.

39. The Commissioners of Inland Revenue, upon delivery to them of a practising certificate together with the amount of the duty payable in respect thereof and the duplicate declaration produced to the registrar upon the application therefor, shall stamp the certificate and, after certifying thereon the date on which the duty was, or is deemed for the purposes of this Act to have been, paid, shall return it to the applicant or his agent.

PART III.
—cont.

Stamping
of practising
certificates.

40. It shall be the duty of the registrar to enter upon the roll a note of the date on which the stamp duty on the practising certificate issued to any solicitor was, or is deemed for the purposes of this Act to have been, paid, and for the purpose of enabling the registrar to enter the note the following provisions of this section shall have effect :—

Entry on
roll of
date of
stamping
certificate.

- (i) upon the request of the registrar made at any time after the fifteenth day of February in any year, the Commissioners of Inland Revenue shall at their option either—

- (a) transmit to the registrar an account of the certificates issued between the fifteenth day of November and the second day of January next preceding and stamped during that period, specifying the names and places of business of the solicitors to whom they were issued and the dates on which the stamp duties thereon were, or are deemed to have been paid; or

- (b) return to the registrar the duplicate declarations relating to all such certificates as aforesaid with a memorandum on each declaration specifying the date on which the duty was, or is deemed to have been, paid; and

- (ii) every certificate, not being a certificate to which the preceding paragraph applies, shall, within a month after the stamping thereof, be produced to the registrar who, after making the required entry on the roll, shall make on the certificate a memorandum of the entry having been made.

PART III.

—cont.

Date and
period of
validity
of practising
certificates.

41.—(1) Every practising certificate issued between the fifteenth day of November and the sixteenth day of December in any year shall bear the date of the sixteenth day of November in that year and every other practising certificate shall bear the date of the day on which it is issued.

(2) Every practising certificate issued between the fifteenth day of November and the sixteenth day of December in any year, and stamped before the said sixteenth day of December, shall have effect for all purposes from the sixteenth day of November in that year and that date shall for the purposes of this Act, be deemed to be the date of the payment of the duty thereon.

(3) Every practising certificate, not being a certificate to which the last preceding subsection applies, shall, subject as hereinafter provided, take effect on the day on which it is stamped :

Provided that a certificate which is required by subparagraph (ii) of the last preceding section to be produced to the registrar and is not so produced within one month after the stamping thereof shall take effect only on the date on which it is so produced, unless the Master of the Rolls directs that it shall take effect from the date of the stamping thereof or from some subsequent date.

(4) Every certificate shall continue in force from the day from or on which it has or takes effect in accordance with this section until the fifteenth day of November next following (both days inclusive) and shall then expire.

Law list
to be
prima facie
evidence of
solicitor
holding
certificate.

42.—(1) Any list purporting to be published by authority of the Commissioners of Inland Revenue and to contain the names of solicitors and conveyancers who have obtained stamped practising certificates for the current year before the second day of January in that year shall, until the contrary is proved, be evidence that the persons named therein as solicitors holding such certificates as aforesaid for the current year are solicitors holding such certificates.

(2) The absence from such list of the name of any person shall, until the contrary is proved, be evidence

that that person is not qualified to practise as a solicitor under a certificate for the current year, but in the case of any such person an extract from the roll certified as correct by the registrar shall be evidence of the facts appearing in the extract.

PART III.
—*cont.*

PART IV.

PRIVILEGES, RESTRICTIONS AND OFFENCES IN CONNECTION WITH PRACTICE.

43. No person shall be qualified to act as a solicitor unless his name is on the roll and he has in force a duly stamped practising certificate, and a person who is not so qualified is in this Part of this Act referred to as an “unqualified person.”

Qualifica-
tions for
practising
as solicitor;

44.—(1) Every person so qualified as aforesaid may practise as a solicitor—

Rights of
practising
and rights
of audience.

- (i) in the Supreme Court; and
- (ii) upon signing the roll of Solicitors of any inferior court of law or equity which keeps such a roll (but without payment of any fee), in that court; and
- (iii) in all courts and before all persons having jurisdiction in matters ecclesiastical; and
- (iv) in all matters relating to applications to obtain notarial faculties,

and shall be entitled to all the rights and privileges, and may exercise and perform all the powers and duties, formerly appertaining to the office or profession of a proctor in the provincial, diocesan, or other jurisdictions in England:

Provided that nothing in this Act shall affect the provisions of section one hundred and twenty of the Supreme Court of Judicature (Consolidation) Act, 1925, or section forty-one or section seventy-two of the County Courts Act, 1888, or any other enactment in force at the commencement of this Act and restricting the right of any solicitor to practise as such in any court.

15 & 16
Geo. 5.c. 49.
51 & 52 Vict.
c. 43.

(2) Nothing in this Act shall prejudice or affect any right of practising or being heard in, before or by any

PART IV.
—*cont.*

court, tribunal or other body which immediately before the commencement of this Act was enjoyed by virtue of any enactment, rule, order or regulation or by custom or otherwise by persons qualified to act as solicitors.

Unqualified
person not
to act as
solicitor.

45.—(1) No unqualified person shall act as a solicitor, or as such sue out any writ or process, or commence, carry on or defend any action, suit or other proceeding, in the name of any other person or in his own name, in any court of civil or criminal jurisdiction, or act as a solicitor in any cause or matter, civil or criminal, to be heard or determined before any court of assize, any general or quarter sessions, any justice or justices, or any commissioners of His Majesty's revenue.

(2) If any person contravenes the provisions of this section, he shall be guilty of a misdemeanour and of contempt of the court in which the action, suit, cause, matter or proceeding in relation to which he so acts is brought or taken and may be punished accordingly, and shall be incapable of maintaining any action for any costs in respect of anything done by him in the course of so acting, and shall, in addition to any other penalty or forfeiture and any disability to which he may be subject, be liable for each such offence to a penalty of fifty pounds to be recovered, with full costs of action, by action brought in the High Court, or in any County Court, by the Society with the sanction of the Attorney-General, and to be applied to the use of His Majesty.

Penalty for
pretending
to be a
solicitor.

46. Any person, not having in force a practising certificate, who wilfully pretends to be, or takes or uses any name, title, addition or description implying that he is, qualified or recognised by law as qualified to act as a solicitor, shall be liable on summary conviction to a penalty not exceeding ten pounds for each such offence.

Penalty on
unqualified
practitioner
preparing
certain
instruments.

47.—(1) Any person, not being a barrister, or a duly certificated solicitor, law agent, writer to the signet, notary public, conveyancer, special pleader, or draftsman in equity, who, for or in expectation of any fee, gain or reward, either directly or indirectly, draws or prepares any instrument relating to real or personal estate, or any legal proceeding, shall be liable on summary conviction to a fine not exceeding fifty pounds.

(2) Notwithstanding anything in the Summary Jurisdiction Acts, proceedings in respect of any offence under this section may be brought at any time within two years next after the commission of the offence or within six months next after the first discovery thereof by the prosecutor, whichever period is the shorter.

PART IV.
—cont.

(3) This section shall not extend to—

- (a) any public officer drawing or preparing instruments in the course of his duty; or
- (b) any person employed merely to engross any instrument or proceeding.

(4) For the purposes of this section, the expression “instrument” does not include—

- (a) a will or other testamentary instrument; or
- (b) an agreement under hand only; or
- (c) a letter or power of attorney; or
- (d) a transfer of stock containing no trust or limitation thereof.

48. Any person, not being a barrister or a duly certificated solicitor, notary public or conveyancer, who, for or in expectation of any fee, gain or reward, either directly or indirectly, draws or prepares any instrument of transfer or charge for the purposes of the Land Registration Act, 1925, or makes any application or lodges any document for registration under that Act at the registry, shall on summary conviction be liable to a fine not exceeding fifty pounds :

Penalty on
unqualified
practitioner
preparing
certain
documents
for purposes
of Land
Registration
Act, 1925.

15 & 16
Geo. 5. c. 21.

Provided that this section shall not extend to—

- (a) any public officer drawing or preparing instruments and applications in the course of his duty; or
- (b) any person employed merely to engross any instrument or application.

49. Any person, not being a barrister, or a duly certificated solicitor, notary public, conveyancer, special pleader, or draftsman in equity, who for or in expectation of any fee, gain or reward, either directly or as an agent of any other person, whether a person qualified as above mentioned or not, takes instructions for or draws or

Penalty on
unqualified
practitioner
acting in
preparation
of papers for
probate, &c.

PART IV.
—cont.

prepares any papers on which to found or oppose a grant of probate or of letters of administration shall, without prejudice to any liability or disability to which he may be subject under any other section of this Act or under any other Act, be liable on summary conviction to a penalty not exceeding ten pounds for each such offence.

No costs recoverable where unqualified person acts as solicitor.

50. No costs in respect of anything done by any person who acts as a solicitor at a time when he has not in force a practising certificate shall be recoverable in any action, suit, or matter by any person whomsoever.

Solicitor not to act as agent for unqualified person.

51.—(1) No solicitor shall wilfully and knowingly act as agent in any action, or in any matter in bankruptcy for any unqualified person, or permit his name to be made use of in any such action, or matter upon the account, or for the profit, of any unqualified person, or send any process to any unqualified person, or do any other act enabling any unqualified person to appear, act or practise in any respect as a solicitor in any such action or matter.

(2) Where it appears to the disciplinary committee or, as the case may be, to the High Court, that a solicitor has acted in contravention of this section, his name shall be struck off the roll.

(3) Where the High Court order the name of a solicitor to be struck off the roll in respect of an offence under this section, they may further order that the unqualified person who was enabled by the conduct of the offender to act or practise as a solicitor shall be imprisoned for any period not exceeding one year.

Employment by solicitor of persons struck off the roll or suspended.

52.—(1) No solicitor shall, in connection with his practice as a solicitor, without the written permission of the Law Society, which may be given for such period and subject to such conditions as the Society think fit, employ or remunerate any person who to his knowledge is disqualified from practising as a solicitor by reason of the fact that his name has been struck off the roll, otherwise than at his own request, or is suspended from practising as a solicitor.

(2) A solicitor aggrieved by the refusal of the Society to grant any such permission as aforesaid, or by any conditions attached by the Society to the grant

thereof, may appeal to the Master of the Rolls, who may confirm the refusal or the conditions, as the case may be, or may, in lieu of the Society, grant such permission for such period and subject to such conditions as he thinks fit.

PART IV.
—*cont.*

(3) If any solicitor acts in contravention of the provisions of this section or of the conditions subject to which any permission has been given thereunder, his name shall be struck off the roll or he shall be suspended from practice for such period as the disciplinary committee, or the High Court, think fit.

53.—(1) No solicitor whilst a prisoner in any prison shall as a solicitor, in his own name or in the name of any other solicitor, sue out any writ or process, or commence, prosecute or defend any action or any matter in bankruptcy.

Solicitors
not to
commence
or defend
actions
whilst in
prison.

(2) Any solicitor commencing, prosecuting or defending any such action or matter in contravention of this section shall be incapable of maintaining any action for the recovery of any costs in respect of any business done by him whilst so confined as aforesaid, and he and any solicitor permitting him to commence, prosecute or defend any such action or matter in his name, shall be guilty of contempt of the court in which such action or matter was commenced or prosecuted and may be punished accordingly.

54. It shall not be lawful for any solicitor who is a justice of the peace for any county, riding or division of a county, nor, subject as hereinafter provided, for any partner of his, to practise directly or indirectly before any justices for that county, riding or division, or for any borough within that county, riding or division :

Solicitor
justices in
counties.

Provided that, in the case of a solicitor who is a justice of the peace for the county of London by virtue only of his office as mayor of a metropolitan borough, nothing in this section shall disqualify any partner of his for practising as a solicitor before any justices of the said county.

55.—(1) Any person who, whilst he is disqualified from practising as a solicitor by reason of the fact that he has been struck off the roll otherwise than at his own request or is suspended from practising as a solicitor

Penalty on
failure to
disclose fact
of having

PART IV. seeks or accepts employment by a solicitor in connection
 —*cont.* with that solicitor's practice without previously in-
 been struck forming him that he is so disqualified as aforesaid,
 off, &c. shall on summary conviction be liable for each offence
 to a fine not exceeding ten pounds.

(2) Notwithstanding anything in the Summary Jurisdiction Acts, proceedings under this section may be commenced at any time before the expiration of six months after the first discovery of the offence by the prosecutor, but no such proceedings shall be commenced except by, or with the consent of, the Attorney-General.

PART V.

REMUNERATION OF SOLICITORS.

Non-contentious Business.

Power to
make gene-
ral orders as
to remun-
eration of
solicitors in
non-con-
tentious
business.

56.—(1) For the purposes of this section there shall be a committee consisting of the following persons—

- (i) The Lord Chancellor;
- (ii) The Lord Chief Justice;
- (iii) The Master of the Rolls;
- (iv) The President of the Society;
- (v) A solicitor, being the president of a provincial law society, nominated by the Lord Chancellor to serve on the committee during his tenure of office as president; and
- (vi) Subject to the provisions of the next succeeding subsection, the Chief Land Registrar appointed under the Land Registration Act, 1925.

(2) The committee or any three of them (the Lord Chancellor being one) may make general orders prescribing and regulating in such manner as they think fit the remuneration of solicitors in respect of non-contentious business and may revoke or alter any such order :

Provided that the Chief Land Registrar shall be deemed to be a member of the committee for the purpose only of prescribing and regulating the remuneration of

solicitors in respect of business under the Land Registration Act, 1925.

PART V.
—*cont.*

(3) One month at least before any such order is made, the Lord Chancellor shall cause a draft thereof to be sent to the Council, and the committee shall, before making the order, consider any observations in writing submitted to them by the Council within the said month, and may then make the order, either in the form of the draft or with such alterations or additions as they may think fit.

(4) An order under this section shall not take effect until one month after it has been laid before each House of Parliament, and if within that month an address is presented to His Majesty by either House seeking the disallowance of the order, in whole or in part, His Majesty may, by Order in Council, disallow the order in whole or in part, as the case may be, and the order, so far as disallowed, shall not take effect.

(5) An order under this section may, as regards the mode of remuneration, prescribe that it shall be according to a scale of rates of commission or percentage, varying or not in different classes of business, or by a gross sum, or by a fixed sum for each document prepared or perused, without regard to length, or in any other mode, or partly in one mode and partly in another, and may regulate the amount of remuneration with reference to all or any of the following, among other, considerations, that is to say—

- (i) the position of the party for whom the solicitor is concerned in the business, that is, whether as vendor, or purchaser, lessor or lessee, mortgagor or mortgagee, and the like;
- (ii) the place where, and the circumstances in which, the business or any part thereof is transacted;
- (iii) the amount of the capital money or rent to which the business relates;
- (iv) the skill, labour and responsibility involved therein on the part of the solicitor;
- (v) the number and importance of the documents prepared or perused, without regard to length;

PART V.
--cont.

(6) An order under this section may authorise and regulate—

(a) the taking by a solicitor from his client of security for payment of any remuneration, to be ascertained by taxation or otherwise, which may become due to him under any such order; and

(b) the allowance of interest.

(7) As long as any order under this section is in operation, the taxation of bills of costs of solicitors shall, subject to the provisions of the next succeeding section with respect to agreements as to remuneration, be regulated by that order.

(8) In this section, the expression “provincial law society” means any body of solicitors in England, other than the Society, incorporated by Royal Charter or under any enactment relating to companies, and in this and the next succeeding section the expression “client” includes any person who, as a principal or on behalf of another, or as a trustee or executor, or in any other capacity, has power, express or implied, to retain or employ, and retains or employs, or is about to retain or employ, a solicitor, and any person for the time being liable to pay to a solicitor for his services any costs.

Agreements
with respect
to remunera-
tion for
non-con-
tentious
business.

57.—(1) Whether or not any order is in force under the last preceding section, a solicitor and his client may, either before or after or in the course of the transaction of any non-contentious business by the solicitor, make an agreement as to the remuneration of the solicitor in respect thereof.

(2) The agreement may provide for the remuneration of the solicitor by a gross sum, or by commission or percentage, or by salary, or otherwise, and it may be made on the terms that the amount of the remuneration therein stipulated for either shall or shall not include all or any disbursements made by the solicitor in respect of searches, plans, travelling, stamps, fees or other matters.

(3) The agreement shall be in writing and signed by the person to be bound thereby or his agent in that behalf.

(4) The agreement may be sued and recovered on or set aside in the like manner and on the like grounds as

an agreement not relating to the remuneration of a solicitor :

PART V.

—*cont.*

Provided that if on any taxation of costs the agreement is relied on by the solicitor and objected to by the client as unfair or unreasonable, the taxing officer may enquire into the facts and certify them to the court and if on that certificate it appears just to the court that the agreement should be cancelled, or the amount payable thereunder reduced, the court may order the agreement to be cancelled, or the amount payable thereunder to be reduced, and may give such consequential directions as they think fit.

58.—(1) If a mortgage is made to a solicitor, either alone or jointly with any other person, he, or the firm of which he is a member, shall be entitled to recover from the mortgagor in respect of all business transacted and acts done by him or them in negotiating the loan, deducing and investigating the title to the property, and preparing and completing the mortgage, such usual costs as he or they would have been entitled to receive if the mortgage had been made to a person who was not a solicitor and that person had retained and employed him or them to transact the said business and do the said acts.

Remuneration of a solicitor who is a mortgagor.

(2) If, whether before or after the commencement of this Act, a mortgage has been made to, or has become vested by transfer or transmission in, a solicitor, either alone or jointly with any other person, and if after the commencement of this Act any business is transacted or acts are done by that solicitor, or by the firm of which he is a member, in relation to that mortgage, or the security thereby created or the property comprised thereunder, then he or they shall be entitled to recover from the person on whose behalf the business was transacted or the acts were done, and to charge against the security, such usual costs as he or they would have been entitled to receive if the mortgage had been made to and had remained vested in a person who was not a solicitor and that person had retained and employed him or them to transact the said business and do the said acts.

(3) In this section the expression "mortgage" includes any charge on any property for securing money or money's worth.

PART V.

—cont.

Power to
make agree-
ments as to
remunera-
tion for
contentious
business.

Contentious Business.

59. A solicitor may make an agreement in writing with his client as to his remuneration in respect of any contentious business done, or to be done, by him providing that he shall be remunerated either by a gross sum, or by salary or otherwise, and at either a greater or a less rate than that at which he would otherwise have been entitled to be remunerated.

Miscella-
neous provi-
sions as to
agreements
with respect
to costs of
contentious
business.

60.—(1) Such an agreement—

- (i) shall not affect the amount of, or any rights or remedies for the recovery of, any costs payable by the client to, or to the client by, any person other than the solicitor, and that person may, unless he has otherwise agreed, require any such costs to be taxed according to the rules for the time being in force for the taxation thereof :

Provided that the client shall not be entitled to recover from any other person under any order for the payment of any costs to which the agreement relates more than the amount payable by him to his solicitor in respect thereof under the agreement :

- (ii) shall be deemed to exclude any claim by the solicitor in respect of the business to which it relates other than—

(a) a claim for the agreed costs ; or

(b) a claim for such costs as are expressly excepted therefrom.

(2) A provision in such an agreement that the solicitor shall not be liable for negligence, or that he shall be relieved from any responsibility to which he would otherwise be subject as a solicitor, shall be void.

(3) No action shall be brought upon any such agreement, but the Court may, on the application of any person who is a party to, or the representative of a party to, the agreement, or who is, or who is alleged to be, liable to pay, or who is or claims to be entitled to be paid, the costs due or alleged to be due in respect of the business to which the agreement relates, enforce or set aside the agreement and determine every question as to the validity or effect thereof.

(4) On any such application, the court—

PART V.
—cont.

- (a) if they are of opinion that the agreement is in all respects fair and reasonable, may enforce it;
- (b) if they are of opinion that the agreement is in any respect unfair or unreasonable, may declare it void and may order it to be given up to be cancelled and may order the costs covered thereby to be taxed as if the agreement had never been made;
- (c) in any case, may make such orders as to the costs of the application as they think fit.

(5) If the business covered by any such agreement is business done, or to be done, in any action, the amount payable under the agreement shall not be received by the solicitor until the agreement has been examined and allowed by a taxing officer of the court, and if the taxing officer is of opinion that the agreement is unfair or unreasonable, he may require the opinion of the court to be taken thereon and the court may reduce the amount payable thereunder, or order the agreement to be cancelled and the costs covered thereby to be taxed as if the agreement had never been made.

(6) When the amount agreed for under any such agreement has been paid by or on behalf of the client or by any person entitled so to do, the person making the payment may at any time within twelve months after payment apply to the court and the court, if it appears to them that the special circumstances of the case require the agreement to be re-opened, may, on such terms as may be just, re-open the agreement and may order the costs covered thereby to be taxed and the whole or any part of the amount received by the solicitor to be repaid by him.

(7) Where any such agreement is made by the client as the guardian or committee of, or as a trustee under a deed or will for, any person whose property will be chargeable with the whole or any part of the amount payable under the agreement, the agreement shall, before payment, be laid before the taxing officer of the court, and that officer shall examine the agreement and may disallow any part thereof, or may require the opinion of the court to be taken thereon.

PART V.
—*cont.*

(8) Any such client as is mentioned in the last preceding subsection who pays the whole or any part of the amount payable under the agreement without the agreement having been allowed by the officer or by the court, shall be liable at any time to account to the person whose property is charged with the whole or any part of the amount so paid for the sum so charged, and the solicitor who accepts the payment may be ordered by the court to refund the amount received by him.

(9) In this and the next succeeding section the expression "court" means—

- (i) in relation to an agreement under which any business has been done in any court having jurisdiction to enforce and set aside agreements, any such court in which any of that business has been done;
- (ii) in relation to an agreement under which no business has been done in any such court, and under which more than fifty pounds is payable, the High Court;
- (iii) in relation to an agreement under which no business has been done in any such court and under which not more than fifty pounds is payable, the judge of any county court which would, but for the provisions of this section prohibiting the bringing of an action on the agreement, have had jurisdiction in an action thereon.

Death, incapability,
or change of
solicitor, &c.

61.—(1) If, after some business has been done under an agreement made in pursuance of the provisions of section fifty-nine of this Act but before the solicitor has wholly performed it, the solicitor dies or becomes incapable of acting, then any party to, or the representative of any party to, the agreement, may apply to the court and the court shall have the same jurisdiction as to enforcing the agreement so far as it has been performed, or setting it aside, as they would have had if the solicitor had not died or become incapable of acting :

Provided that the court may, notwithstanding that they are of opinion that the agreement is in all respects fair and reasonable, order the amount due in respect of

the business done thereunder to be ascertained by taxation, and in that case—

PART V.
—cont.

- (a) the taxing officer, in ascertaining that amount, shall have regard so far as may be to the terms of the agreement; and
- (b) payment of the amount found by him to be due may be enforced in the same manner as if the agreement had been completely performed.

(2) The provisions of the last preceding subsection shall apply in the event of the client changing his solicitor (as, notwithstanding the agreement, he shall be entitled to do) before the conclusion of the business to which the agreement relates in the same manner as they apply when the solicitor dies or is incapacitated, with this modification, that if an order is made for the taxation of the amount due to the solicitor in respect of the business done under the agreement, the court shall direct the taxing officer to have regard to the circumstances under which the change of solicitor has taken place, and the taxing officer, unless he is of opinion that there has been no default, negligence, improper delay or other conduct on the part of the solicitor affording to the client reasonable ground for changing his solicitor, shall not allow to the solicitor the full amount of the remuneration agreed to be paid to him.

62. Subject to the provisions of the two last preceding sections, the costs of a solicitor in any case where an agreement has been made in pursuance of the provisions of section fifty-nine of this Act shall not be subject to taxation, nor to the subsequent provisions of this Part of this Act with respect to the signing and delivery of a solicitor's bill.

Agreement
excludes
taxation.

63.—(1) Nothing in the four last preceding sections of this Act shall give validity to—

- (i) any purchase by a solicitor of the interest, or any part of the interest, of his client in any action, suit or other contentious proceeding; or
- (ii) any agreement by which a solicitor retained or employed to prosecute any action, suit or other contentious proceeding stipulates for payment only in the event of success in that action, suit or proceeding; or

Miscellaneous provisions as to remuneration for contentious business.

PART V.
—cont.

(iii) any disposition, contract, settlement, conveyance, delivery, dealing or transfer which is under the law relating to bankruptcy invalid against a trustee or creditor in any bankruptcy or composition.

(2) A solicitor may, with respect to any contentious business to be done by him, take security from his client for his costs to be ascertained by taxation or otherwise.

(3) Subject to the provisions of any rules of court, upon every taxation of costs with respect to any contentious business, the taxing officer may—

- (i) allow interest at such rate and from such time as he thinks just on moneys disbursed by the solicitor for the client, and on moneys of the client in the hands of, and improperly retained by, the solicitor;
- (ii) in determining the remuneration of the solicitor, have regard to the skill, labour and responsibility involved in the business done by him.

General Provisions as to Remuneration.

Power of the High Court to order a solicitor to deliver his bill and to deliver up deeds.

64.—(1) The jurisdiction of the High Court to make orders for the delivery by a solicitor of a bill of costs and for the delivery up of, or otherwise in relation to, any deeds, documents or papers in his possession, custody or power, is hereby declared to extend to cases in which no business has been done by him in the High Court.

(2) In this and the three next succeeding sections the expression “solicitor” includes the executors, administrators and assignees of the solicitor in question.

Action to recover solicitors’ costs.

65.—(1) Subject to the provisions of this Act, no action shall be brought to recover any costs due to a solicitor until one month after a bill thereof has been delivered in accordance with the requirements of this section :

Provided that, if there is probable cause for believing that the party chargeable with the costs is about to quit England, or to become a bankrupt, or to compound with his creditors, or to do any other act which would tend to prevent or delay the solicitor obtaining payment, the High Court may, notwithstanding that one month

has not expired from the delivery of the bill, order that the solicitor be at liberty to commence an action to recover his costs and may order those costs to be taxed.

PART V.
—*cont.*

(2) The said requirements are as follows :—

- (i) The bill must be signed by the solicitor, or, if the costs are due to a firm, one of the partners of that firm, either in his own name or in the name of the firm, or be enclosed in, or accompanied by, a letter which is so signed and refers to the bill, and
- (ii) The bill must be delivered to the party to be charged therewith, either personally or by being sent to him by post to, or left for him at, his place of business, dwelling house, or last known place of abode;

and where a bill is proved to have been delivered in compliance with those requirements, it shall not be necessary in the first instance for the solicitor to prove the contents of the bill, and it shall be presumed, until the contrary is shown, to be a bill *bonâ fide* complying with this Act.

66.—(1) On the application, made within one month of the delivery of a solicitor's bill, of the party chargeable therewith, the High Court shall, without requiring any sum to be paid into court, order that the bill shall be taxed and that no action shall be commenced thereon until the taxation is completed.

Taxation of
bills on the
application
of the party
chargeable
or the
solicitor.

(2) If no such application is made within the period mentioned in the last preceding subsection, then, on the application either of the solicitor, or of the party chargeable with the bill, the court may, upon such terms, if any, as they think fit (not being terms as to the costs of the taxation), order—

- (a) that the bill shall be taxed;
- (b) that, until the taxation is completed, no action shall be commenced on the bill, and any action already commenced be stayed :

Provided that—

- (i) if twelve months have expired from the delivery of the bill, or if the bill has been paid, or if a verdict has been obtained or a writ of inquiry executed in an action for the recovery of the costs covered thereby, no order shall

PART V.
—cont.

be made on the application of the party chargeable with the bill except in special circumstances and, if an order is made, it may contain such terms as regards the costs of the taxation as the Court may think fit:

- (ii) in no event shall any such order be made after the expiration of twelve months from the payment of the bill.

(3) Every order for the taxation of a bill shall require the taxing officer to tax not only the bill but also the costs of the taxation and to certify what is due to or by the solicitor in respect of the bill and in respect of the costs of the taxation.

(4) If after due notice of any taxation, either party thereto fails to attend, the officer may proceed with the taxation *ex parte*.

(5) Unless—

- (i) the order for taxation was made on the application of the solicitor and the party chargeable does not attend the taxation; or

- (ii) the order for taxation otherwise provides,

the costs of the taxation shall be paid according to the event of the taxation, that is to say, if one-sixth of the amount of the bill is taxed off, the solicitor shall pay the costs, but otherwise the party chargeable shall pay the costs:

Provided that the taxing officer may certify any special circumstances relating to the bill or the taxation thereof to the court, and the court may make thereon any such order as they think fit respecting the payment of the costs of the taxation.

Taxation on
application
of third
parties and
beneficiaries
under
trusts, &c.

67.—(1) Where a person other than the person who is the party chargeable with the bill for the purposes of the last preceding section, has paid, or is, or was, liable to pay, the bill either to the solicitor or to the party chargeable with the bill, that person or his administrators, executors or assignees may apply to the court for an order for the taxation of the bill as if he were the party chargeable therewith, and the court may make thereon the same order, if any, as they might have made if the application had been made by that party:

Provided that in cases where the court have no power to make an order except in special circumstances the court may, in considering whether there are special

circumstances sufficient to justify them in making an order, take into account circumstances affecting the applicant, but which do not affect the party chargeable with the bill.

(2) If a trustee, executor or administrator has become liable to pay the bill of a solicitor, the High Court may, upon the application of any person interested in any property out of which the trustee, executor or administrator has paid, or is entitled to pay, the bill, and upon such terms, if any, as they think fit, order the bill to be taxed, and may order such payments, in respect of the amount found due to or by the solicitor and in respect of the costs of the taxation, to be made to or by the applicant, or to or by the solicitor, or to the executor, administrator or trustee, as they think fit :

Provided that in considering any such application, the court shall have regard to—

- (i) the provisions of the last preceding section as to applications by the party chargeable with the taxation of a solicitor's bill so far as they are capable of being applied to an application made under this subsection ;
- (ii) the extent and nature of the interest of the applicant.

(3) If an applicant under the last preceding subsection pays any money to the solicitor, he shall have the same right to be paid that money by the trustee, executor or administrator chargeable with the bill as the solicitor had.

(4) The following provisions shall apply to applications made under this section—

- (i) except in special circumstances no order shall be made for the taxation of a bill which has already been taxed :
- (ii) the court may, if they order taxation of the bill, order the solicitor to deliver to the applicant a copy of the bill upon payment of the costs of that copy.

68.—(1) Every application for an order for the taxation of a solicitor's bill or for the delivery of such a bill and the delivering up of any deeds, documents and papers by a solicitor shall be made in the matter of that solicitor.

General
provisions
as to taxa-
tions.

PART V.
—*cont.*

(2) In the course of any taxation, the taxing officer may request the taxing officer of any other court to assist him in taxing any part of the bill, and the taxing officer so requested shall thereupon proceed to tax that part of the bill and shall return the bill with his opinion thereon to the first-named taxing officer.

In any such case the taxing officer who is requested to tax the part of the bill shall have such powers, and may take such fees, in respect thereof as he would have or be entitled to take if he were taxing that part of the bill in pursuance of an order of the court of which he is an officer, and the first-named taxing officer shall not take any fee in respect of that part of the bill.

(3) The certificate of the taxing officer by whom any bill has been taxed shall, unless it is set aside or altered by the court, be final as to the amount of the costs covered thereby, and the court may make such order in relation thereto as they think fit, including, in a case where the retainer is not disputed, an order that judgment be entered for the sum certified to be due with costs.

Charging
orders.

69. Any court in which a solicitor has been employed to prosecute or defend any suit, matter or proceeding may at any time declare the solicitor entitled to a charge on the property recovered or preserved through his instrumentality for his taxed costs in reference to that suit, matter or proceeding, and may make such orders for the taxation of the said costs and for raising money to pay, or for paying, the said costs out of the said property as they think fit, and all conveyances and acts done to defeat, or operating to defeat, that charge shall, except in the case of a conveyance to a bonâ fide purchaser for value without notice, be void as against the solicitor :

Provided that no order shall be made if the right to recover the costs is barred by any statute of limitations.

Savings.

70. Nothing in this Part of this Act shall affect the following enactments :—

8 & 9 Vict.
c. 124.

(i) Section three of the Leases Act, 1845, (which regulates the taxation of the costs of preparing and executing deeds under that Act);

21 & 22
Vict. c. 108.

(ii) Section thirteen of the Matrimonial Causes Act, 1858, (which provides for the taxation of the costs of matrimonial causes);

- (iii) Section two hundred and forty-nine of the Public Health Act, 1875, (which provides for the taxation, by the Clerk of the Peace, for the purposes of audit, of any solicitor's bill in respect of business performed on behalf of a local authority); PART V.
—*cont.*
38 & 39
Vict. c. 55.
- (iv) Section one hundred and eighteen of the County Courts Act, 1888, (which provides for the taxation of the costs of proceedings in the County Court);
- (v) Any of the provisions of the Costs in the Criminal Cases Act, 1908, (which relates to costs in certain criminal cases); 8 Edw. 7
c. 15.
- (vi) Section one hundred and thirty-nine and paragraphs 3 and 4 of the Fourteenth Schedule to the Law of Property Act, 1922, (which contains provisions as to costs in connection with the extinguishment of manorial incidents under that Act); 12 & 13
Geo. 5. c. 16.
- (vii) Section one hundred and forty-four of the Land Registration Act, 1925, (which enables rules to be made regulating, amongst other things, the taxation and incidence of the costs of the registration of land and other matters done under that Act);
- (viii) Any other enactment, not expressly repealed by this Act, which authorises the making of rules or orders or the giving of directions with respect to costs, or which provides that any such rule, order or direction made or given under a previous enactment shall continue in force.

PART VI.

MISCELLANEOUS AND GENERAL.

71.—(1) Every commission appointing a solicitor to be a commissioner for oaths shall, before being acted upon, be produced to the registrar by or on behalf of the holder, and the registrar shall enter the particulars of every commission so produced to him in a register to be kept for the purpose and shall note upon the commission the fact and date of entry. Registration of appointment of solicitor as commissioner for oaths.

(2) Such fees shall be chargeable by the registrar in respect of the registration under this section of any

PART VI.
[—cont.]

commission as the Lord Chancellor by order may, with the concurrence of the Lord Chief Justice and the Master of the Rolls, from time to time prescribe.

(3) The register kept in pursuance of this section shall be open to inspection during office hours by any person without payment.

Qualification
for holding
office of
solicitors
who have
been
barristers.

72. For the purposes of any statutory provision or custom whereby the qualification of a solicitor for holding any office depends upon his having been admitted and enrolled for a prescribed period, that period shall, in the case of a solicitor who before admission was a barrister, be reckoned as if he had been admitted and enrolled on the date on which he was called to the Bar.

Regulations.

73. The Master of the Rolls with the concurrence of the Lord Chancellor and the Lord Chief Justice or (in case of difference) of one of them may, for the purposes of the execution of Parts I to III of this Act, make general regulations with respect to the following matters or any of them, that is to say, the admission of a person as a solicitor, articles of clerkship, the issuing of practising certificates and the duties of the registrar with respect to the keeping of the Roll and the issuing of such certificates.

Council of
the Law
Society to
act on
behalf of
Society.

74. All acts, rules and regulations authorised or required to be done or made by the Law Society under or in pursuance of this Act, or any order, rules and regulations made in pursuance of this Act, may be done or made on behalf of the Society by the Council thereof.

Authentica-
tion of
regulations
and other
documents.

75. All regulations, certificates, notices and other documents made or issued by the Law Society for any purpose whatsoever may be signed on behalf of the Society by the Secretary, or by such other officer of the Society as may be from time to time prescribed by the Council.

Power of
registrar to
inspect file
of proceed-
ings in
bankruptcy
of solicitor.

76. The registrar shall be entitled, without payment of any fee, to inspect the file of proceedings in bankruptcy relating to any solicitor against whom proceedings in bankruptcy have been taken and to be supplied with office copies of the proceedings on payment of the usual charge for such copies.

77. Nothing in this Act shall prejudice or affect any rights or privileges of the solicitor to the Treasury or to any other public department (including the Ecclesiastical Commissioners and Queen Anne's Bounty) or to the Duchy of Cornwall, or require any such officer as aforesaid or any clerk or officer appointed to act for him to be admitted or enrolled or to hold a practising certificate in any case where it would not have been necessary for him to be admitted or enrolled or to hold such a certificate if this Act had not been passed.

PART VI.
—*cont.*

Saving for solicitors to public departments.

78. Nothing in this Act shall prejudice or affect any rights or privileges which immediately before the commencement of this Act attached to the office of solicitor of the City of London.

Saving for solicitor to the City of London.

79. Nothing in this Act shall affect any enactment empowering any person, not being a qualified solicitor, to conduct, defend or otherwise act in relation to any legal proceedings.

Saving for persons authorised to conduct legal proceedings.

80. Any person duly admitted as a solicitor shall be an officer of the Supreme Court, and shall be subject to the jurisdiction thereof in accordance with the provisions of the Supreme Court of Judicature (Consolidation) Act, 1925.

Saving for jurisdiction of court and judges.

81.—(1) In this Act, unless the context otherwise requires—

Interpretation and construction of references.

The "Law Society" or the "Society" means the society incorporated and regulated by Royal Charter, dated the twenty-sixth day of February, eighteen hundred and forty-five, and Royal Charters supplemental thereto, dated respectively the twenty-sixth day of November, eighteen hundred and seventy-two, the fourth day of June, nineteen hundred and three, and the second day of June, nineteen hundred and nine;

The "Council" means the Council of the Society elected in accordance with the provisions of the said Charters;

The "Disciplinary Committee" means the Committee appointed under section four of this Act;

"Solicitor" means a solicitor of the Supreme Court;

PART VI.
—*cont.*

The “Roll” means the list of solicitors kept in accordance with the provisions of this Act;

“Client” (except in relation to non-contentious business) includes any person who as principal or on behalf of another person retains or employs, or is about to retain or employ, a solicitor, and any person who is or may be liable to pay a solicitor’s costs;

“Contentious business” includes any business done by a solicitor in any court, whether as a solicitor or as an advocate;

“Non-contentious business” includes any business connected with sales, purchases, leases, mortgages, settlements and other matters of conveyancing;

“Costs” includes fees, charges, disbursements, expenses and remuneration.

(2) References in any enactment to solicitors, attorneys or proctors, or to the registrar of attorneys and solicitors shall be construed as references to solicitors and to the registrar of solicitors respectively.

Repeals, &c.

82.—(1) The enactments mentioned in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(2) Any admission, appointment, approval, notice, certificate, instrument, order, rule, regulation, direction, appeal or proceeding under or for the purposes of any enactment repealed by this Act shall be treated as an admission, appointment, approval, notice, certificate, instrument, order, rule, regulation, direction, appeal or proceeding under or for the purposes of the corresponding provision of this Act.

(3) Any document referring to any Act or enactment repealed by this Act shall be construed as referring to this Act or the corresponding enactment in this Act, and any register, roll or list kept under any Act or enactment so repealed shall be deemed part of the register, roll or list to be kept under the corresponding provisions of this Act.

(4) Nothing in this section shall affect the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

83.—(1) This Act may be cited as the Solicitors Act, 1932. PART VI.
—*cont.*

(2) This Act shall come into operation on the first day of October, nineteen hundred and thirty-two. Short title,
commence-
ment and
extent.

(3) This Act shall not extend to Scotland or Northern Ireland.

SCHEDULES.

FIRST SCHEDULE.

Section 15.

PROVISIONS WITH RESPECT TO THE LENGTH OF A PERSON'S TERM OF ARTICLED SERVICE.

Certain Graduates.

1. In the case of any person who, before entering into articles, has taken a degree, not being an honorary degree, in arts, law or science at any University specified in the Second Schedule to this Act, the term shall be three years.

Certain Women Students at Universities.

2. In the case of a woman who, before entering into articles, has resided at any University specified in the Second Schedule to this Act under the conditions required of women by that University and for the period necessary thereat for a man to obtain such a degree as is mentioned in the last preceding paragraph, and has passed, at a date when that University did not admit women to degrees, the final examination necessary thereat for a man to obtain such a degree, the term shall be three years.

Barristers.

3. In the case of a person who has been called to the Bar in England and who ceases to be a barrister before entering into articles, the term shall be three years.

4. In the case of a person who has been called to the Bar in England and who, before being so called, was bound by articles for a term of five years and served thereunder for three years and who has ceased to be a barrister before presenting himself for his final examination, the term of three years served under such articles as aforesaid shall suffice if those articles were determined with the consent, endorsed thereon, of the solicitor with whom they were entered into.

1st SCH.
—cont.

Scottish Advocates, Writers to the Signet, &c.

5. In the case of a person who, before entering into articles, has been admitted a member of the Faculty of Advocates in Scotland or has been admitted and enrolled as a Writer to the Signet, or as a solicitor in the Supreme Courts of Scotland, or as a Procurator before any of the Sheriff Courts of Scotland, the term shall be three years.

Solicitors' Clerks after Ten years' Service.

6. In the case of any person who, before entering into articles, has been for ten years a bonâ fide clerk to a solicitor and has during that term been bonâ fide engaged in the transaction and performance under the direction and superintendence of that solicitor of such matters of business as are usually transacted and performed by solicitors and who produces to the examiners appointed by the Society satisfactory evidence that he has served faithfully, honestly and diligently as such, the term shall be three years.

Persons having passed certain Examinations.

7. The Master of the Rolls, with the concurrence of the Lord Chancellor and the Lord Chief Justice or of one of them may make regulations directing that in the case of any person who has passed any examination held in or by a University specified in the Second Schedule to this Act, or any college or educational institution specified in the regulations, the term shall be four years.

Other Persons.

8. In the case of any other person, the term shall be five years.

Section 28,
Sch. I.

SECOND SCHEDULE.

UNIVERSITIES RECOGNISED FOR CERTAIN PURPOSES OF THIS ACT.

(i) The Universities of Aberdeen, Birmingham, Bristol, Cambridge, Dublin, Durham, Edinburgh, Glasgow, Leeds, Liverpool, London, Oxford, Sheffield, St. Andrew's and Wales, the Victoria University of Manchester, the National University of Ireland and the Queen's University of Belfast; and

(ii) Any University in the United Kingdom added to the foregoing list by order of the Board of Education made after consultation with the Society and with the concurrence of the Lord Chancellor, the Lord Chief Justice and the Master of the Rolls, or any two of them.

THIRD SCHEDULE.

Section 37.

FORMS.

A.

DECLARATION FOR OBTAINING PRACTISING CERTIFICATE.

No.

19

I hereby declare that
 admitted an Attorney of (a) in was
 term in the year (or) a Solicitor of the Supreme Court
 in the month of in the year and that
 my place(s) of business is as follows (b) :—
 his

Dated this day of 19 .

Signature

(Partner or London agent of the said)

To the Law Society.

(a) One Court is sufficient.

(b) If removed since last certificate state such removal

B.

PRACTISING CERTIFICATE.

No.

19 .

Pursuant to the Solicitors Act, 19 , the Law Society, as the registrar of Solicitors, hereby certifies that

Solicitor of the Supreme Court, whose place(s)

of business is at , has this
 are

day left with the secretary of the said society a declaration in writing signed by (a) , containing his name and place or places of business, together with the term and year, or the month and year, in or as of which he was admitted, and hereby further certifies that the said Solicitor is duly enrolled a Solicitor of the Supreme Court, and is entitled to practise as such Solicitor on this certificate being duly stamped as required by law.

Given under the hand of the secretary of the Law Society
 this day of 19 .

.....Secretary.

Produced and entered this day of
 19 .

(a) "The said Solicitor" or "the said Solicitor's partner on his behalf" or "the said Solicitor's London Agent" as the case may be. The name of the partner or agent need not be inserted here.

* * If this certificate is stamped after the 1st January, it must be produced to the Law Society within a month of the payment of the duty.

If a notary, this certificate should be entered at the Faculty office.

Section 82.

FOURTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
2 & 3 Vict. c. 33.	The Solicitors (Clerks) Act, 1839.	Section nine.
6 & 7 Vict. c. 73.	The Solicitors Act, 1843	The whole Act.
7 & 8 Vict. c. 86.	The Solicitors (Clerks) Act, 1844.	Section four.
23 & 24 Vict. c. 127.	The Solicitors Act, 1860	The whole Act, except :— (i) in section twenty-two, the words “ Any List of “ Solicitors and Convey- “ ancers purporting to “ be published by the “ Authority of the Com- “ missioners of Inland “ Revenue, and to contain “ the Names of Solicitors “ and Conveyancers who “ have obtained stamped “ Certificates for the cur- “ rent Year on or before “ the First Day of Janu- “ ary in the same Year, “ shall, until the contrary “ be made to appear, be “ Evidence in all Courts, “ and before all Justices “ of the Peace and others, “ that the Persons named “ therein as Conveyancers “ holding such Certificates “ as aforesaid for the “ current Year are Con- “ veyancers holding such “ Certificates; and the “ Absence of the Name of “ any Person from such “ List shall, until the “ contrary be made to “ appear, be Evidence as “ aforesaid that such Per- “ son is not qualified to “ practise as a Conveyan- “ cer under a Certificate

4TH SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
		“ for the current Year; “ but in the case of any “ Person being a Convey- “ ancer whose Name does “ not appear on such List, “ the Fact of his being so “ shall be proved in the “ Way in which it is now “ by Law required to be “ proved ”; and (ii) Sections twenty-seven, thirty-four and thirty-five.
33 & 34 Vict. c. 28.	The Attorneys' and Solicitors' Act, 1870.	In section three, the words from “ the words following ” to “ proctors ” and from the word “ Client ” to the end of the section.
35 & 36 Vict. c. 81.	The Attorney and Solicitors Act (1860) Amendment Act, 1872.	Sections four to eighteen. The whole Act.
37 & 38 Vict. c. 68.	The Attorneys and Solicitors Act, 1874.	The whole Act.
38 & 39 Vict. c. 79.	The Legal Practitioners Act, 1875.	The whole Act.
40 & 41 Vict. c. 25.	The Solicitors Act, 1877.	The whole Act.
40 & 41 Vict. c. 62.	The Legal Practitioners Act, 1877.	The whole Act.
44 & 45 Vict. c. 44.	The Solicitors Remuneration Act, 1881.	The whole Act.
51 & 52 Vict. c. 65.	The Solicitors Act, 1888	The whole Act.
54 & 55 Vict. c. 39.	The Stamp Act, 1891 .	Section forty-four.
57 Vict. c. 9.	The Solicitors Act, 1894	The whole Act.
58 & 59 Vict. c. 25.	The Mortgagees Legal Costs Act, 1895.	The whole Act.
62 & 63 Vict. c. 4.	The Solicitors Act, 1899	The whole Act.
62 & 63 Vict. c. 14.	The London Govern- ment Act, 1899.	Subsection (3) of section twenty-four.
63 & 64 Vict. c. 14.	The Colonial Solicitors Act, 1900.	The whole Act.
6 Edw. 7. c. 16.	The Justices of the Peace Act, 1906.	In section three, from the word “ but ” to the end of the section.
6 Edw. 7. c. 24.	The Solicitors Act, 1906	The whole Act.

4TH SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
9 & 10 Geo. 5. c. 56.	The Solicitors Act, 1919	The whole Act.
9 & 10 Geo. 5. c. 71.	The Sex Disqualification (Removal) Act, 1919.	Section two.
11 & 12 Geo. 5. c. 32.	The Finance Act, 1921	Section sixty.
12 & 13 Geo. 5. c. 57.	The Solicitors Act, 1922	The whole Act.
15 & 16 Geo. 5. c. 21.	The Land Registration Act, 1925.	Sections one hundred and eighteen and one hundred and forty-six.
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act, 1925.	Subsections (2) and (3) of section two hundred and fifteen. In subsection (1) of section two hundred and sixteen, the words from “and (b)” to “appointment.”
18 & 19 Geo. 5. c. 22.	The Solicitors Act, 1928	The whole Act.

CHAPTER 38.

An Act to amend the law of Scotland with regard to the purchase and hire of articles not exceeding twenty pounds in value by payment in instalments, and with regard to proceedings in the sheriff's small debt court. [12th July 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Contracts
to which
Act applies.

1. This Act shall apply to any contract entered into after the passing of this Act, notwithstanding anything contained in such contract, in whatsoever terms it may be expressed and whether it be truly one of sale or of hire, if it is a contract whereby—

(a) one person (hereinafter referred to as “the owner”) lets on hire to another person (hereinafter